

**IN THE COURT OF CIVIL JUDGE SENIOR DIVISION
AT PANJIM GOA**

Special Civil Suit No. 52/2013/A

Communidade of Bambolim,
A body constituted and functioning under
the Code of Comunidades 1961,
represented therein by their duly elected Attorney,
having their office at
Bambolim Church road,
P. O. GMC Complex,
Bambolim, Ilhas Goa -403202

...Plaintiff

V/s

1. Mr. Pascoal Trindade,
major in age, businessman
r/o Palbrika Mansion,
Near Our Lady of Rosary High School,

Dona-Paula Tiswadi, Goa

2. Mrs. Albertina Trindade,
wife of Pascoal Trindade,
housewife,
R/o Palbrika Mansion,
Near Our Lady of Rosary High School,
Dona-Paula, Tiswadi, Goa
3. Mrs. Dionisia Dias e Mergulhao,
w/o late Maximo Mergulhao, housewife,
Model Residency, First floor,
St. Inez, Panaji, Tiswadi, Goa
4. M/s Raghurai Tamba,
A registered partnership firm,
Through its partner Shri. Raghurai Tamba,
major in age, Having its office at "Parimal"
Altinho, Panaji-Goa
5. Mr. Raghurai Tamba,
major in age, Businessman, r/o "Parimal"
Altinho, Panaji-Goa
6. Mr. Pundalik Cuncolkar,
Son of late Parshuram Cuncolkar,
Major married, service and his wife,
7. Mrs. Sumati Pundalik Cuncolkar,
Major, service,
Both r/o H. No. not known,
Palem, Siridao, Tiswadi, Goa
- 7(a) Pradesh Pundalik Cuncollikar**
R/o Palem, Siridao,
Tiswadi, Goa
- 7(b) Viraj Pundalik Cuncollikar**
R/o Palem, Siridao,
Tiswadi, Goa
- 7(c) Pooja Viraj Cuncollikar**
R/o Palem, Siridao,
Tiswadi, Goa
8. Mrs. Ganga alias Shobha Vasudev Narvekar,
w/o late Vasudev Narvekar,
major, daughter of late Parshuram Cuncolkar,
Major, housewife,
9. Ms. Mamtha Vasudev Narvekar,
D/o late Vasudev Narvekar,
major, unmarried, service,
both r/o r/o H. No. not known,
Goa Velha, Tiswadi-Goa
10. Mrs. Kensar Manuel Pereira alias Kunkollikar,
Wife of Manuel Pereira,
daughter of late Parshuram Cuncolkar,

Major, married, housewife

11. Mr. Manuel Pereira,
s/o late Joaquim Pereira,
major in age, married, service,
both r/o H. No. not known,
Cacra, St. Cruz, Ilhas-Goa.
12. Mrs. Rukmini Bhikaro Gauns Gomes,
w/o late Bhikaro Gauns alias Gomes,
major, r/o H. No. not known,
Modlowado, Siridao,
Palem, Tiswadi, Goa.
13. Mrs. Geeta Prakash Narvekar,
w/o Prakash Narvekar,
d/o late Bhikaro Gauns alias Gomes,
major in age,
14. Mr. Prakash Narvekar,
Major in age, married,
Government servant, Indian National,
Both, r/o H. No. not known,
Taleigao, Tiswadi-Goa
15. Mrs. Chandrika Bhikaro Gauns alias Gomes alias Lotlikar,
D/o late Bhikaro Gauns alias Gomes,
Major , r/o H. No. not known,
Modlowado, Siridao,
Palem, Tiswadi, Goa.
16. Mr. Madhu Cuncolkar alias Canconkar,
s/o LaximanCuncolkar,
major, service,
17. Mrs. Succorina Madhu Cuncolkar alias Canconkar,
Alias Manisha Madhu Cuncolkar alias Canconkar,
w/o Madhu Cuncolkar alias Canconkar,
major, Housewife, Both r/o H. No. not known,
Modlowado, Siridao, Palem, Tiswadi, Goa.
18. Mr. Rama Gomes alias Lotlikar,
s/o Sebastiao Gomes,
major, service
19. Smt. Sita Rama Gomes alias Lotlikar,
Housewife, both , r/o H. No. not known,
Palem, Siridao,
Tiswadi, Goa.
20. M/s Loonkar Developers Pvt. Ltd.
Having its registered office at 219,
Commerce House, 140, Nagindas Master Road,
Fort Mumbai,
Through its Authorized Signatory
Mr. Meghal B. Jain, aged 34 years,
Son of Bhabukamal L. Jain, in service,
Resident of 601/602, Uttam Villa, Daulat Nagar,
Road No. 10, Borivli (E), Mumbai 66.Defendants

(Above addresses are registered
addresses of parties)

**Suit for declaration, Recovery of Possession, Permanent
Injunction and consequential reliefs**

MAY IT PLEASE YOUR HONOUR

The Plaintiff above named respectfully state and submits as under:-

1. The plaintiff is Comunidade of Bambolim and is entitled under the Code of Comunidade to file litigation to protect and preserve the land belonging to the Comunidade of Bambolim. The plaintiff has its office at the address given in cause title. I say that since time immemorial there were various properties of village Bambolim, Tiswadi Taluka, Goa variously called "Comunidade Lands" which were denominated as "Lotes" bearing Lote number of each property incorporated therein name of the property in the map/plan called "Planta da Comunidade de Bambolim". These plans are also available on record with the Directorate of Settlement and Land Records copies of which are in possession with the plaintiff. These utility lands in the village were used for centuries for common benefit of Gaonkars which consisted of hills (Oiteiros), reserved grazing lands, paddy fields, water bodies(ponds) passages for pedestrian and even the grave yards etc. These land, stood vested in the comunidades governed by laws called "Code of Comunidades" and managed by a constituted body and functioning with its office at Bambolim and accountable to the administrator of Comunidade of respective Taluka. They are generally treated as inalienable in order that their status be preserved as "Comunidade lands" the protection of common rights of Gaonkars were so zealously protected and some of the Legislation mentions that even the vesting of the property did not mean that the common right of the Gaonkars were lost by such vesting.
2. The Code of Comunidades under Chapter II (Section I and II) deals with "Livro do Tombo 1st" is the cadastral of all the properties of the Comunidades mentioned in the maps (Plans) and describes the source of revenue not connected to private land, while "Livro do Tombo 2nd is the detailed list of the properties in Comunidade domain which are in "POSSESSION" and inscribed in the name of private persons. "Livro do Tombo 2nd "B" deals with registration of definite calculation of redeeming "FOROS" (ground Rent) of the properties inscribed in the said Book. These

properties have matriz registration number which shows name and boundaries of the property with the name of the owner.

3. The plaintiff is under a duty under the Code of Comunidades to protect the interests of the Comunidade and is entitled to file the present suit before this Court. **Annexure "A"** is the permissions dt. 8/10/2012 and 15/10/2013 obtained from Honorable Administrative Tribunal to the plaintiff to file the suit. The plaintiff is represented by its duly elected Attorney.
4. The plaintiff submits that the defendant no. 1, 3, 4 and 5 are the persons who have manipulated the various records and fraudulently obtained collusive decrees in civil suits and executed three sale deeds of the property of the plaintiff under present of survey no. 93/2, 3 and 4 which are challenged in the present suit. Apart from the property involved in the present suit property under survey no. 89/3 (part) and 90/1 is claimed by the defendant no.3 to 5 for which separate suit is being filed as the facts are slightly different i the other suit. The Defendant no. 2 is wife of defendant no. 1 and is necessary party in the present suit since as per law prevailing in Goa wife acquired right in the husbands property and in the present case the plaintiff is challenging the fraud by obtaining courts decrees and execution of sale deeds in the name of defendant no. 1. Defendant no. 6 to 19 are the persons who have connived with the defendant no. 1, 3, 4 and 5 and are parties to obtain various orders and decree in order to felicitate the defendant no. 1, 3, 4 and 5 to grab the property of the plaintiff. One such decree is in special civil suit no. 6/2007/C dt. 20/01/2007 passed by Civil Judge Senior Division at Panjim, Goa and second is decree dt. 11/4/2001 in Regular Civil Suit NO. 15/2001/A. The plaintiff is challenging the said, judgment and decree is in special civil suit no. 6/2007/C dt. 20/01/2007 obtained by misrepresenting before this honorable court. Hence they are necessary parties to the present suit. The facts necessary for adjudication of the present suit are as under:
5. I say that there are various properties of the plaintiff in the village Bambolim which were owned and possessed by the plaintiff during Portuguese regime in Goa and managed as per Code of Comunidades. The subject matter of the present suit is part of the original property of the plaintiff named as "Saveli Gali" and part of the property "Oros" presently surveyed under no. 93/2,3 and 4 in village Bambolim, Tiswadi Taluka of State of Goa.

6. The plaintiff submits that the subject matter of the present suit is more particularly described as the plots of land under three sub Divisions of original survey no. 93 of Village Bambolim which are parts of original property called Saveli gali and Oros, and the total area is admeasuring 97,500 sq mts, namely:-

- a. Survey no. 93/2 admeasuring 35,600 sq mts presently bounded towards east by survey no. 93/1 (part), towards west by survey no. 103/1, 106 and 107 towards north by village Road and towards south by survey no. 93/1 (part) and 103.
- b. Survey no. 93/3 admeasuring 26,825 sq mts presently bounded towards east by survey no. 93/1 (part), towards west by Survey no. 103 towards north by Survey no. 103/2 and towards south by Survey no. 94.
- c. Survey no. 93/4 admeasuring 35075sq mts presently bounded towards east by Survey no. 93/1 (part), towards west by Survey no. 95, 96 and 97 towards north by Survey no. 94 and towards south by boundary of village Siridao which plots are marked on the plan annexed to the plaint.

The said three plots described above are herein after called as the "suit property".

7. I say that originally there were two large properties one by name "Saveli Gali" and other property known as "Oros" adjoining each other belonging to the plaintiff. The property known as "Saveli Gali" is bearing Lote no. 47, Lote No. 48 Adicao 'A' and 'B' and Lote no. 49 as per the Tombacao Book No. 1 details of which are as under :

- a. Lote No. 47 hillock named Saveli-gali (1st plot) with boundaries - on the east:- Lote No. 48 (parcel "A") and 43 (parcel "B"); on the North Lote No. 43 (parcel "B") and property of Mariano Francisco S. Gonsalves- West- property of Mariano Francisco S. Gonsalves, from Bambolim, drain, property of Marcos Vicente Gonsalves, of Bambolim and reserved lote no. XXX- South- reserved Lote No. XXX, Lote No. 49 and 48 (parcel A) —**Area** 65848.00 m2- Perimeter -1023.60 mts which was basically Cashew garden.
- b. Lote No. 48- 2nd plot (parcel A) of hillock named Saveli-galy with boundaries -east-Village Siridao and main road-North- reserved lote No. XXIX, lots nos. 43 (parcel B) and 47-West-Lote Nos. 43 (parcel B) 47 and 49 -South —Lote No. 49 and village Siridao —**Area** 115696.00m2- Perimeter-1629.30m-which was basically Cashew Plantation.
- c. Lote No. 48- 2nd plot (parcel B) of hillock named Saveli-galy with boundaries -east-Village Curca and Siridao - North- emphyteusis (perpetual lease) of

the heirs of Agostinho Cardozo-West-main road -South main road and Village Siridao—**Area** 32122.00 m2- Perimeter-719.80m-which was basically Cashew garden.

- d. Lote No. 49- 3rd plot of hillock named Saveli-gali with boundaries -east- Village Siridao Lots nos. 48 (parcel A) —North- Lote No. 47 and reserved Lot No. XXX property of heirs of Xaba Mainatta Paicas and others from Taleigao and Janqui Porbina, Bascora Poroba Sinai and others, from Ribandar-West- Reserved Lote No. XXX, property of Venctexa Sinai Zuarcar and other from Siridao, and Reserved Lote No. XXX property of heirs of Xaba Mainatta Paicar and others from Taleigao and of Vitorina Melo from Sta. Cruz and Janqui Porbina, Bascxora Poroba Sinai and others, from Ribandar and of the heirs of Subraria R. Sinai Dondo, from Verem of Bardez, of Visnum Camotim Assencar and heirs of Balsrisna R. Camotim Assencar from Mapusa South- property of Venctexa Sinai Zuarcar and other from Siridao, and of Janqui Porbina, Bascxora Poroba Sinai and others, from Ribandar and of the said heirs of Subraria R. Sinai dondo, from Verem of Bardez- **Area** 132045.00m2- Perimeter-2081.80m-which was basically Cashew garden.

8. I say that the other property of the plaintiff called "Oros" was under different Lotes namely Lote no. 43 Adicao(parcel) A,B,C,D details of which are as under:-

- a. Lote No. 43- Parcel(Adicao) 'A' of the Hill known as "Oros"withboundaries - on the east:- Lote No. 42; on the North properties of Ramanata Gauco of Palem of Siridao, of the heirs of Cipriano da Silva, of the heirs of Pedro Lourenco de Abreu and Henriques Jose de Abreu, of the heirs of Vicente Bernardo Abreu, of Domingos Antonio Joao de Souza and Avelino de Souza and of Jeremeias Jeromino de Souza, all from Bambolim, reserved lote No. XXV and property of Jorge Luis de Souza - on the West: The said reserved lote No. XXV; on the South: the said reserved lote No. XXV and the reserved lote No. XXIII-Area 58544.00 perimeter-1083.10mwhich was basically - Cashewnut grove.
- b. Lote No. 43-Parcel(Adicao) 'B' of the Hill known as "Oros" with-boundaries on the east:- Lote No. 48 (parcel "A"); reserved lote Nos. XXIX, XXIV and XXV; on the North reserved lote Nos. XXIX, XXIV and XXV on the West: - properties of the heirs of Moga Gauda, from Bambolim, that of the heirs of Rumaldo Jose Francisco Salvador Gonsalves, from Bambolim and Lote No. 47; on the South: property of the heirs of Rumaldo Jose Monteiro, from Bambolim, lote No. 47 and 48 (Parcel "A"). Area - 29584.00 sq mts perimeter-1364.80m-which was basically Cashewnut grove.
- c. Lote No. 43-Parcel(Adicao) 'C' of the Hill known as "Oros"with boundaries - on the east:- Highway (Estrada Nacional); on the North reserved lote Nos.

- XXIII; on the West: - reserved lote Nos. XXIII and XXV; on the South: reserved lote Nos. XXIX. Area - 10042.00 sq mts perimeter-461.50m.
- d. Lote No. 43-Parcel(Adicao) 'D' of the Hill known as "Oros" with boundaries - on the east:- Curca Village; on the North reserved lote Nos. XXVI and highway; on the West: - Highway; on the South: "Aforamentos" (perpetual Leases) of the heirs of Agostinho Cardoso, from Mercês. Area - 10554.00 sq mts perimeter-548.60m which was basically -Cashewnut grove.
9. The plaintiff craves leave to refer and rely upon the Tombasao Book No. 1 and Tombasao Book No. 2 showing that the said property Saveli gali and Oros belong to the Comunidade of Bambolim copy of which along with English translation is produced at **Annexure "B"**, which is the extract from records of the comunidade. The old survey Plan which is called planta bearing no. 15036 and 15037 of these properties is available in the office of Director of Settlement and Land Records Government of Goa, the copy of the same is produced and marked as **Exhibit C**.
10. The plaintiff submits that the property 'Saveli-Gali' bearing Lote No. 47- primeiro Lanço (1st parcel/division) Lote No. 48 Segundo Lanço 2nd parcel (Adicao A and B) and Lote No. 49 Terceiro Lanço (3 parcel/division) as per Tombasao Book 1 (Livro de Tombo 1) belongs to the Comunidade of Bambolim as per "Planta Cadastral da Comunidade de Bambolim" under no. 15036 and 15037. I say that the form II (Area) book of Village Bambolim shows that S. No. 89, 90/1 and 2, 93 which corresponds to these properties of the plaintiff shows that the plaintiff is the owner of the said property. This form was made in the year 1972-73. The plaintiff craves leave to refer and rely upon the copy of the said form which is produced and marked as **Exhibit D**.
11. I say that part of the property Saveli Gali under Lote No. 47 and 49 were partially acquired while Lote No. 48 (Segundo Lanço) (Adicao A) and adjoining Lote Reservado (Reserved Land) No. XXIV belonging to the plaintiff were acquired entirely along with other properties by the notification no. LQN-10/142 dated 18/08/1965 for Construction of Medical College, hostel and hospital building as per "Planta Cadastral da Comunidade de Bambolim" and as per the acquisition plan of the Government. The Land Acquisition Officer vide order dated 30th March 1966 awarded and paid compensation to the plaintiff. The plaintiff craves leave to refer and rely upon the notification dt. 18/8/1965 and award dt. 30/3/1966 the copy of the same is produced and marked as **Exhibit E**. Subsequently the acquiring

Department took possession of acquired land vide letter no. LQN-10/227 dated 26/02/1966 from the plaintiff. The plaintiff crave leave to refer and rely upon the letter dt.26/2/1966 the copy of the same is produced and marked as **Exhibit F**.

12. The plaintiff further states that thereafter the Government proposed to acquire additional area admeasuring 23229.00 sq mts from the property Saveli gali for medical college vide notification no. V/11/67/GMC/B-Project/7655 dated 4th December 1969 published in Govt. Gazette series II no. 38 dt. 04/12/1969. The plaintiff crave leave to refer and rely upon the notification dt. 4/12/1996 which is produced at **Annexure "G"**

13. I say that as per the minutes recorded in the Book of Contract of Comunidade of Bambolim various hills (OITEIROS) were auctioned on 3/1/1970 by the Managing Committee (Junta Administrativa) including Clerk of Comunidade of Bambolim Mr. Sidora Mahadev Xete which includes the hills of "Oros" and "Saveli Galli" which were allotted to the highest bidder as follows:-

a. Lote No. 43 (Adicao 'A' to 'D') OROS to Mr. Salvador Bartolomeu Monteiro for annual rent of Rs. 764/- which presently carries survey no. 89/1, 89/2 and 89/3, 90/1 and 90/2 and 93/2 (part) (due to amalgamation of part of Lote No. 43(B) and 47 as per Survey no. 89, 90 and 93 respectively.

i) Lote No. 47 Premeiro Lanco (1st part) to Mr. Teofilo J. Monteiro for annual rent of Rs. 1810/- which presently carries survey no. 93/2 (part) of Survey no. 93

ii) Lote No. 48 Segundo Lanco (2nd part) consist of (Adicao A and B) to Mr. Manuel Belem Moneiro for annual rent of Rs. 3001/- for (Adicao A and B) which presently carries Survey no. 93/1 (part) while Lote No. 48 (Adicao B) carries Survey no. 92 which is situated across Bambolim Siridao National Highway Road.

iii) Lote No. 49 Terceiro Lanco (3rd part) to Mr. Inacio Benedito Matias Monteiro for annual rent of Rs. 3001/- which presently carries survey no. 93/3(part) and 93/4 (part) of Survey no. 93

14. The plaintiff crave leave to refer and rely upon **Annexure "H"** colly" which is Minutes of Auction of property Oros and **Annexure "I"** colly" which is Minutes of auction of the property "Saveli Gali" declaring Salvador Bartolomeu Monteiro and others to be the highest auction bidder. These document shows that the property Saveli gali and Oros were independent

properties and were in possession of the plaintiff even in the year 1970 and were not private properties of any person.

15. I say that after the auction in the year 1970 there was no other auction of this properties held by the plaintiff, nor was any proceeding initiated by the plaintiff in view of directives issued by the Administrator of Comunidades in view of Goa Agricultural Tenancy Act 1971.

16. The plaintiff states that in respect of the part of the property "Oros" bearing Lote No. 43 adicao 'A' 'B' 'C' and 'D' one Raiu Ishwar Gaunso from Bambolim who is deceased and to succeeded by his heirs had claimed tenancy rights and obtained a declaration of tenancy in case no. CAJ/ARC/PRC/18/71 from the Mamlatdar of Tiswadi by making late Salvador Bartolomeu Monteiro and the plaintiff as party to the said legal proceedings stating that the plaintiff was the actual owner at that particular time. At this time there were no survey numbers as they exist today since the property was identified by lote Numbers and by name of the property.

17. I say that from 1971 some more persons also obtained orders as tenants from the Mamlatdar of Tiswadi declaring themselves to be deemed tenants of the property "Saveli gali" under Lote No. 47, 48 (Adicao A and B) and Lote No. 49 of Bambolim village.

18. The plaintiff submits that it is found from the records that an order dated 10/12/1971 came to be made in Case No. CAJ/ARC/PRC/10/AND-11/71 wherein Parshuram Cuncolikar, Luis Rosario, Sebastiao Gomes and Bicarior Gomes were declared deemed tenants of the cashew garden namely a) "Saveli Gali", (Segundo Lanco) ('A' and 'B') (second Part) b) "Saveli Gali" Terseiro Lanco(third Part) which relate to the property "Saveli Gali". The plaintiff submits that these orders clearly demonstrate that the property Saveli gali and Oros were owned and possessed by the plaintiff even in the year 1971.

19. The plaintiff crave leave to refer and rely upon **Annexure "J"** colly are the orders made in the Case No. CAJ/ARAC/PRC/10/EHD-11/71 and 18/1971 the orders dated 20/12/1971, 10/12/1971 made by the Mamlatdar of Tiswadi declaring aforesaid persons as tenants.

20. The plaintiff submits that till the year 1972-73 the properties of the comunidade had Lote numbers with Matriz registration number. The plaintiff crave leave to refer and rely upon the matriz records of these two

properties bearing Book no. 19 serial No. 52,53,54,55,56 of Bambolim village. The serial no. 52 to 54 shows boundaries of property OROS and Sr. No. 55 and 56 shows boundaries of property Savelli Gali. The plaintiff had applied for these copies however by letter dt. 30/7/2013 Mamlatdar of Tiswadi has informed that the copies cannot be given. The plaintiff crave leave to refer of the said letter. The plaintiff submits that new general survey was carried out between the year 1972-1973 and new survey numbers were given to the property Saveli gali and Oros considering the various land acquisition proceedings.

21. The plaintiff submits that according to this new survey numbers the property Saveli gali corresponds to survey no. 93/1, 2 (part) 3, 4 and the property Oros corresponds to survey no. 89/1, 89/2, 89/3, 90/1, 90/2 and 93/2 (part) of village Bambolim. The plaintiff submits that the survey records were promulgated in the year 1985 in respect of Bambolim Village, Tiswadi, Taluka. After new survey from 1972-73 the property "OROS" was given different survey numbers and present survey numbers came into existence. The present survey no. 89/1, 89/2, 89/3, 90/1, 90/2 and 93/2 (part) is original property OROS and present survey no. 93/1, 2 (part) 3, 4 is the original property Saveli galli. The acquired property under survey no. 89/1, 93/1 is recorded in the name of Government and its department and 93/1A is recorded in the name of Gomeco Co-operative Housing Society (93/1A).

22. I say that the Government acquired part of the property Oros under Lote 43 Adicao 'B' and the balance area which is not acquired is amalgamated and falls in present Survey No. 93/2 of village Bambolim. Similarly after acquiring part of the property Saveli gali from Lote No. 47 the balance area which is not acquired falls in present survey no. 93/2 of village Bambolim. Thus the present Survey No. 93/2 of village Bambolim has formed by amalgamation of unacquired area from lote no. 43 Adicao 'B' and lote no. 47. The Lote No. 48 Adicao A and adjoining Lote Reservado (Reserved Land) XXIV from the property Saveli gali were fully acquired and Lote No. 49 was partly acquired and balance area which is not acquired falls under two subdivisions of survey no.93 namely survey no. 93/3 and 93/4 of village Bambolim. The plaintiff submits that the remaining part of survey no. 93/4 is also from the property of the plaintiff Lote reservado XXX. The plaintiff has got prepared the sketch/plan of the said property through a surveyor Mr. Prezares Gonsalves who have identified the properties by comparing the old plans of the property Oros and Saveli gali and the present survey plan.

The plaintiff crave leave to refer and rely upon the said plan and report dt 24/10/2013 which is produced with the plaint.

23. I say that the ownership and possession of the plaintiff of these properties is seen from various land acquisition proceedings and civil proceedings mentioned in this plaint. I say that the Government vide notification No. RD/LQN/314/79/ dt. 31/12/1980 acquired land from the property "Oros" and "Saveli Galli" for widening National Highway, Bambolim Siridao road from the new survey no. 89, 90/1 and 2 and 93 of Bambolim village under which Comunidade of Bambolim was shown as owner and compensation paid to the plaintiff. The plaintiff crave leave to refer and rely upon the notification dt. 31/12/1980 and Award LAO/386 dt. 23/3/81 which is produced at **Annexure "K"**

24. I say that Ishwar Gauns filed Special Civil Suit No. 128/82/A before Civil Judge Senior Division at Panaji claiming that he was tenants of the said property acquired by the Government and that he is entitled for compensation on the suit it was claimed that one Salvador B. Monteiro was the lease holder of the plaintiff and thereafter they become the tenants of the said Salvador B. Monteiro. At the same time Sebastian Gomes, Bicaró Nicalam Gomes, Purshuram Kunkalkar and Madhu Kunkallar filed Special Civil Suit No. 127/1982/A claiming to be tenant of the plaintiff of the property under survey no. 93. Accordingly the Hon'ble Civil Judge Senior Division Panaji by two separate judgment and order dt. 06/08/1986 held that the plaintiff is the owner of the said property and that the said Iswar Gauns was tenant of the Survey no. 89 and 90/1. The Hon'ble Court directed the plaintiff to pay 50% of the compensation with interest at 6% per annum from the date of filing of the suit till recovery to them. The plaintiff has paid the amount as per decree. The plaintiff crave leave to refer and rely upon the Judgment dt. 6/8/86 which is produced and marked as **Annexure "L"**. At this time late one Dionisio Cardozo claimed as heir of Agustino Cardoso being owner of property under survey no. 90/2 and compensation was paid to him. The plaintiff has filed civil suit agisnt heirs of said Augustino Cardozo bearing Regular Civil Suit No. 35/89/B which was dismissed. The plaintiff filed appeal and the plaintiff was held to be owner of the said property in appeal by Honorable District Court. However in second appeal no. 97/2003 the Hon'ble High Court has remanded the case back to trial court which is still pending under RCS NO. 35/1989/B.

25. The plaintiff state that in the year 1980 the Goa Medical College filed an application which does not bear any date to the Land Survey Department for inserting the name of Govt. Department in the survey records of acquired land which was received in the Court of Inspector of Surveyor and Land Records under letter No. 31/1/8/LS-RRT/158/44 dt. 3/4/1980. In this application it was prayed to hold inquiry under section 14(3) of Land Revenue Code 1968. The said application was transferred to the Court of Inspector of Survey and Land Records and Registered a case under NO. LS/CS/ENQ/11/1/80. Notice was served to the Goa Medical College and Comunidade of Bambolim. The plaintiff submits that husband of the respondent no. 4 filed an intervention application dt. 27/06/1980 on the ground that the acquired land under survey no. 89/1 and 93/1 belongs to him. The husband of the defendant no. 4 subsequently filed withdrawal application dt. 22/09/1981 to the said court and thereafter the Inspector of Survey and Records passed the Judgment and disposed the case vide Order dt. 15/1/1982 thereby bifurcating survey no. 93 into four sub division viz survey no. 93/1 in favour of Goa Medical College on account of acquired land as per award dated 30/3/1966 and the un acquired area was given survey no. 93/2,3 and 4 and also survey no. 89 as survey no. 89/1, 2 and 3. The plaintiff crave leave to produce the said applications for intervention, application for withdrawal filed by Maximo Mergulhao and judgment and order dt. 15/1/1982 which are marked as **Exhibit M Colly**.

26. I say that there were other properties of the plaintiff known as Bailem Fondiem, Cunbem Batta and Ohor in village Bambolim belonging to the plaintiff. I say that as per the book of Registration of definite calculation of redeeming of FOROS (Ground rent) of the properties of Book Tombo 2nd B of Comunidade of Bambolim shows that in the year 1939 FORO of 20 installments was paid under item no. 44 by Joaquim Paulo Figereldo of St. Cruz on behalf of Maria Conceicao Rodrigues of the property called Bailem Fondiem, Cunbem Batta, Ohor. The said parts for which ground rent was paid on behalf of Maria Conceicao Rodrigues are as under:-

1 /4th part of Verica of Bailem Fondiem.

Another 1/4th part of the said Verica.

Another Verica of cashew plantation and OHOR

One Xir of the property known as Bucolem.

One piece of coconut garden "Cornacho" and two remaining pieces.

5 pieces of coconut garden called Cunbem Batta.

One half of the first Verica called Bailem Fondiem.

8 pieces owned jointly with his cousin Martinho Rodrigues and house-half and half.

One piece of coconut garden 'Cunbem Batta'.

Two Verica of cashew plantation known as "Bailem Fondiem"

The plaintiff crave leave to refer and rely upon the extract of records of Tombo 2nd B of the year 1939 along with English Translation and which is produced at **Annexure "N"**

27. The plaintiff submits that Verica means small part of the property. Hence the aforesaid parts/verica leased to said Maria Conceicao were small parts of the original properties known as Bailem Fondiem, Cunbem Batta and Ohor originally belonging to the plaintiff and these properties are not the property Saveli Gali and Oros since the property Saveli Gali and Oros have their separate identification. The plaintiff submits that once the properties are granted by the Comunidade following the procedure under the Code of Comunidade, the said properties are not recorded in the records of the comunidade which is called as Tomboçao. Hence except the above records, the plaintiff at present is not able to trace out any other document of grant of the property under name Bailem Fondiem, Cunbem Batta and Ohor to said Maria Conceicao Rodrigues. However it is confirmed that above properties are not saveli gali and Oros.
28. The plaintiff submits that the aforesaid records of the year 1939 of the plaintiff does not refer to the properties described as Saveli Galli and Oros nor they are not from the property known as Saveli Galli and Oros and the said proceedings are not in respect of suit property in the present suit. Besides this the said record is not a title document but payment of ground rent and there is no document of grant of "Aforamento" by the plaintiff in favour of said Maria Conceicao Rodrigues. In the terms of law "Aforamento" is a transaction between the owner and a stranger. In case of "Aforamento" the grantee is entitled to gift, mortgage the property, the transferee being subject to payment of foro (ground rent). However the above records is not a grant to Maria Conceicao Rodrigues and no title or ownership has been conferred on said Maria Conceicao Rodrigues in respect of the properties mentioned in the aforesaid records of the comunidade.
29. The plaintiffs states that the above referred records, auction proceedings, cases filed by various persons and following records will demonstrate that late Alexandre Rodrigues, Maria Conceicao Rodrigues or Maximo Mergulhao were not owners of the property called as Saveli Galli and Oros including the suit property which is part of the said property called as Saveli Galli and

Oros. Besides this it is found from the records of the Comunidade that in the year 1978 land of the comunidade under survey No. 32 was acquired by the Government of Goa for the purpose of extension of Goa Medical Collage. Under the said land acquisition the plaintiffs property was acquired and after passing the award the compensation was paid to the plaintiff. In these land acquisition proceedings in Land Acquisition Case No. 2/1988 and 104/1994 said Maximo Mergulhao had claimed ownership in respect of survey no. 32/1 of village Bambolim by producing a purported certificate allegedly of the year 1904 allegedly issued by the Clerk of the Comunidade in the year 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the said certificate/document produced by him were in relation to the acquired property Bailem Fondiem. The said claim was based on the same certificate of the Clerk allegedly of the year 1904 allegedly issued by the Clerk of the Comunidade in the year 1904. The Hon'ble District Court has held that the plaintiff is owner of the said property and compensation was paid to the plaintiff. The husband of the defendant no. 3 late Maximo Mergulhao had claimed that he is owner of the said property on the basis of the said certificate of the clerk refereed above. It is pertinent to note that said Mergulhao had claimed that the acquired property is Bailem Fondiem and same certificate was relied as documents of title of the property Bailem Fondiem. The plaintiff crave leave to refer and rely upon the Judgment dt.22/11/1993, 24/12/2002 which is produced at **Annexure "O"**

30. The plaintiff submits that the part of the property of the plaintiff called Fondiavelly Gally under Lote no. 38 was acquired by the Government in the year 1986. The said land was plot no. 109 having an area of 17975 sq mts falling under survey no. 44 of village Bambolim which was acquired for institutional complex by the Government. One Mr. Govind Fernandes and Maximo Murgulhao had claimed the compensation claiming the said land. In this proceedings the plaintiff was declared as owner and Maximo Margulhao could not prove his right. The plaintiff crave leave to refer and rely upon the Judgment dt. 31/8/2000 in LAC 98/1987 which is produced at **Annexure "P"**. This fact is stated to demonstrate that said Maximo Mergulhao was claiming most of the properties of the comunidade without having any title documents.
31. The plaintiffs submit that in another Land Acquisition Case No. 9/1981 Maximo Murgulho had claimed ownership in respect of survey no. 46/1 of village Bambolim. The said claim was based on same certificate of the Clerk

issued in 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the document/Certificate produced by him were in relation to the property Bailem Fondiem. The Hon'ble District Court has held that the plaintiff is owner of the said property. The plaintiff crave leave to refer and rely upon Judgment dt. 24/8/1993 in LAC 9/1981 and 31/8/2000 in LAC 100/87 which is produced at **Annexure "Q."** This fact is stated to demonstrate that said Maximo Mergulhao was claiming the said properties of the comunidade without having any title documents.

32. The plaintiff submits that Government vide notification NO. 22/11/82-RD dt. 26/12/1984 acquired land under survey no. 43/2,32/1,44,45 of village Bambolim for institutional complex at Bambolim, Taleigao and Dona Paulo Goa University published in Government Gazette and award was passed in Case No. 1/8/85-Ac dt. 15/10/1985. In this notification the name of the Maximo Mergulhao was shown as owner of the property under various survey numbers of Village Bambolim of which the plaintiff was actual owner and the plaintiffs name was not shown. Similarly in various survey numbers acquired from village Calapur of Comunidade of Calapur, name of Maximo Mergulho was shown as owner. However the plaintiff filed objection claiming ownership and disputes were registered under Land Acquisition Act. Said Maximo Mergulhao had also claimed right in the property of Comunidade of Calapur based on the Certificate dt 18/3/1904 purportedly issued by comunidade of Bambolim, ie. the plaintiff. The Land Acquisition Officer had rejected this claim of Maximo Mergulhao as owner of the property of the plaintiff as well as Comunidade of Calapur. The plaintiff crave leave to refer and rely on award of Land Acquisition officer dt. 4/10/1985 which is produced and marked as **Annexure R** in which it is stated that said Maximo Mergulhao was claiming the properties of the comunidade without having any title documents and the said certificate of the year 1904 was held to be not a title document.

33. The plaintiffs submit that after this, since the dispute was referred under section 30 of the land Acquisition Act for decision on ownership in Land Acquisition Case No. 96/1987 said Maximo Mergulhao had claimed ownership in respect of survey no. 43/2 of village Bambolim. The said claim was again based on the same certificate of the Clerk purportedly of the year 1904. However said Maximo Mergulhao could not establish his title and the court has come to the conclusion that the document/ Certificate produced by him were in relation to the property Bailem Fondiem. The said claim was based on above referred certificate of the Clerk. The Hon'ble District Court

has held that the claim of Maximo Mergulhao was not maintainable as he was not the owner of the said property. This judgment proves that the Certificate purportedly of the year 1904 is not in relation to the property Saveli galli or Oros but was in relation to different property Bailem Fondiem. The plaintiff crave leave to refer and rely upon Judgment dt. 7/8/1995 which is produced at **Annexure "S"**.

34. The plaintiff submits that said Maximo Mergulhao had also claimed ownership of property under survey no. 32/1 of village Bambolim on the basis of the same certificate, which is part of another property of the plaintiff and had taken compensation from the Government after acquisition of the said land. The plaintiff had challenged the payment of compensation to Maximo Mergulhao by filing Writ Petition No. 2/1988. By judgment dt. 7/6/1988 the Hon'ble High Court has held that the plaintiff was the owner of the said property and compensation was wrongly paid to Maximo Mergulhao. Hence the Hon'ble Court directed Maximo Mergulhao to refund the entire compensation and the same was paid to the plaintiff. The plaintiff crave leave to refer and rely upon Judgment dt. 7/6/1988 which is produced at **Annexure "T"**. This fact is stated to demonstrate the false claim of said Maximo Mergulhao.

35. The plaintiff states that in the year 1994 said Maximo Mergulhao who is husband of defendant no. 4 was trying to claim part of the property Oros under present survey no. 89/3 of village Bambolim. Therefore the plaintiff filed Special Civil Suit No. 222/94/A against late Maximo Mergulhao before Civil Judge Senior Division at Panaji seeking amongst other relief, declaration and permanent injunction in respect of the said survey number. The said suit was filed on 1.12.1994 for following reliefs:

36. For a declaration that the property identified under Survey No. 89/3 forms part of property 'OROS' bearing lot No. 43, Adicao 'A' as per Book Tombo-1.

37. For a permanent injunction, restraining the defendant, his servants, agents, attorneys, and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property and (ii) alienating the said property in any form whatever, including claiming, mortgaging or creating third party rights. The plaintiffs crave leave to refer and rely upon the copy of the plaint when required at the time of evidence.

38. The plaintiff submits that the said suit was based on the title of the Comunidade as inscribed/ recorded in Tombo Book 1 shown in the

Tombacao (Plan/Map). The cause of action to file the suit was due to illegal developmental works attempted by strangers in the said property.

39. The plaintiff submits that in this suit late Maximo Mergulhao who is husband/predecessor of defendant no.4 claimed ownership of the said property under survey no. 89/3 of village Bambolim and founded his claim on the purported Certificate allegedly issued by the then Escrivo de Comunidade of Bambolim (Clerk) dated 18.3.1904 and stated that the property was leased by the plaintiff to one Mr. Alexandre Rodrigues from whom he inherited the same being son in law of daughter of Alexandre Rodrigues namely Maria Conceicao Alexandre Rodrigues married to Gregorio Germano Mergulhao .
40. In this suit it was stated by late Maximo Mergulhao that developmental work was being done by one Raghurai Tamba as his agent i. e. defendant no. 3 and 5 herein. The plaintiffs crave leave to refer and rely upon the copy of the written statement in the said suit when required at the time of evidence.
41. The plaintiff submits that in the said suit after settlement of issues the matter was posted sine die in terms of directions from the District and Sessions Judge Panaji. Thereafter on 12.5.1998 the suit was allotted to the 'B' Court for disposal in terms of the directions from the District and Session Judge, Panaji.
42. The plaintiff submits that during the pendency of the suit the said defendant Maximo Mergulhao expired and in the said suit on 19.11.1998 an application was made by the plaintiff to bring his wife, Smt. Dionisia Dias e Mergulhao i. e. defendant no. 4 herein on record of the case as legal representative of the deceased defendant Maximo Mergulhao. Upon no objection given by the Advocate for the defendant in the said suit, the said Dionisia was brought on record. The plaintiff submits that the said Maximo had a son by name Emerico who was not brought on record. The plaintiff submits that it is found that on the same day, i.e. on 19.11.1998, compromise terms were filed in the said suit to compromise/settle the dispute between the plaintiff and the said Dionisia Mergulhao. I say that there was no resolution of the Managing Committee/ the Board and/or the approval/resolution of the General Body of the plaintiff and/or the approval/permission from the administrative Tribunal to compromise the suit as required under the Code of Comunidades.
43. The plaintiff submits that by order passed on 21.11.1998 the said compromise terms filed in the suit were ordered to be taken on record and it

was also recorded that the compromise was lawful since the parties had voluntarily signed the compromise terms. The plaintiffs crave leave to refer and rely upon the copy of the said compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit No. 222/94/B before Civil Judge Senior Division at Panaji. Which is marked **Annexure U collectively**.

44. The plaintiff submits that by the said compromise terms and the Consent Decree, it stated that it was agreed that the plaintiff shall not claim the property surveyed under No. 89/3 and also shall not claim properties surveyed under Nos. 90/1, 93/2, 93/3 and 93/4 of village Bambolim. The plaintiff submits that in the compromise terms it is stated that the Comunidade relinquished their claim to the properties surveyed under Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 admeasuring about 1,35,000 sq.mts. for consideration of 5 plots of developed land admeasuring about 252 sq.mts. each, totaling to 1260 sq.mts. to be allotted within 36 months of the execution of the consent terms. The plaintiff submits that 40 plots of land admeasuring about 252 sq.mts. each, were stated to be allotted to the Gaoncars. The plaintiff submits that Gaunkars of the Comunidade of Bambolim were not parties to the suit and they have/had nothing to do with the compromise in the suit or they were not aware of this compromise. Further there is no constituted body/institute/person called Association of Gaoncars.
45. The plaintiff submits that these consent terms in the said suit were signed by special Attorney of the Comunidade Mr. Jeronimo Monteiro with Mrs. Dionisia Dias e Mergulhao and Shri. Raghurai Tamba ie defendant no.3 and 4 compromising the suit without seeking approval of the General Body of the Comunidade or of the Managing thereby keeping the Comunidade in dark. The suit was compromised without seeking any approval or permission from the Administrative Tribunal in Articles 154(3), 349 and 350 of the Code of Comunidades, 1961. The plaintiff submits that it is believed that the then managing committee of the plaintiff had connived with the defendant no.3 and 4 and had drawn the consent terms illegally. This compromise and consent decree was never known to the gaunkars or the plaintiff till the year 2008 and the plaintiff came to know of the same as stated hereunder.
46. The plaintiff submits that in November-December 2008 the plaintiff received representations from its components/Gaonkars to stop development in the properties belonging to the comunidade wherein it was alleged that the development is being illegally started in the property of the plaintiff and the

property belongs to the plaintiff. Therefore by letter dated 10.12.2008 the plaintiff requested the Village Panchayat of Curca, Bambolim and Talaulim to furnish documents produced by the persons who had started development/construction in the properties/land of the comunidade. By letter dated 2.1.2009 the Village Panchayat furnished documents namely the aforesaid Consent Decree dated 21.11.1998. The plaintiff crave leave to refer and rely upon the said letters dated 10.12.2008 and 2.1.2009 which are in records of CMA 6/2010 . Thus for the first time the plaintiff got the knowledge of the said decree in January 2009.

47. I say that the magnitude of the land scam and inclusion of 4 other properties of the comunidade in the compromise was known to the managing committee of the plaintiff only in January 2009 when the Comunidade received the Consent Decree dated 21.11.1998 from the Village Panchayat of Curca, Bambolim and Talaulim.

48. The plaintiff submits that since the managing committee of the plaintiff had not started any action, some of the Gaunkers of the plaintiff filed writ petitions No. 506/2009, 557/2009, 577/2009 and 657/2011 before the Honorable High Court alleging fraud and challenging the decree passed in the suit and other grounds about prohibition of development of tenanted land. The plaintiff submits that simultaneously some Gaunkars filed special civil suit no. 66/2009 before the Honorable District Court challenging the illegalities and the plaintiff is made as the defendant in the said proceedings. The plaintiff crave leave to produce the certified copy of the said plaint at the time of evidence.

49. The plaintiff submits that the writ petitions No. 102/2009 filed by the Goankars was decided by the Honorable High Court by judgment dt. 18/2/2009 wherein the Administrator of Comunidade Central Zone and Dy Collector at Panjim were directed to hold enquiry. The plaintiff crave leave to refer and rely upon Judgment dt. 18/2/2009 which is produced at **Annexure "V"**

50. The plaintiff submits that as per the order of the honorable High Court dt. 18/2/2009 in W.P. No. 102/2009, the Administrator of Comunidade has passed order dt 3/7/2009 observing that there is fraud played to grab the plaintiffs property and the comunidade should initiate proceedings. The plaintiff crave leave to refer and rely upon order dt. 3/7/2009 which is produced at **Annexure "W"**.

51. The plaintiff submits that after this order of the Administrator of Comunidade, the then Managing Committee of the plaintiff filed Miscellaneous civil application no. 6/2010 for recall of decree in special civil suit no.224/1994 since the property of the plaintiff were sought to be illegally claimed by the defendant no. 3 and 4 and the plaintiff was not aware of the said decree. The said application is still pending. The plaintiff crave leave to refer and rely upon the said application.

52. The plaintiff submits that in this application the plaintiff has stated that the compromise dated 19.11.1998 ordered to be recorded on 21.11.1998 is unlawful and the consequent Decree dated 21.11.1998 is null and void and required to be recalled for following reasons: That Approval/permission/consent required under the Code of Comunidade has not been obtained to compromise the suit. That the special Attorney Jeronimo Monteiro and/or the Advocate engaged for the plaintiff had no authority to compromise/settle the suit on behalf of the Comunidade. That the finding/opinion of the learned judge that the suit stood lawfully compounded/compromised because the parties had signed voluntarily does not satisfy predicates of Order XXIII Rule 3. That the special Attorney of Comunidade Shri. Jeronimo Monteiro, in collusion with the defendant no.3,4 and constituted Attorney Shri. Raghurai Tamba ie defendant no.5 and the advocate for the plaintiff, played a fraud on the plaintiff by filing petition for compromise without obtaining necessary permission/approval from the Administrative Tribunal and deliberately deviating from the procedure described under Articles 154(3), 349 and 350 of the Code of Comunidades. That the compromise entered into between the Comunidade and Dionisia Dias e Mergulhao ie defendant no.3, is void and is a nullity in absence of permission/approval from the Administrative Tribunal and therefore cannot be deemed to be lawful within the meaning of explanation to Rule 3 of Order XXIII. That the explanation to Order XXIII Rule 3 requires the Court to be first satisfied that the agreement or compromise which has been entered into by the parties is lawful and expected to apply its judicial mind while examining the terms of the agreement and to see that it is entered into lawfully i.e. according to the law relating to the matter namely the Code of Comunidades. That the learned Judge did not satisfy himself to find out that the plaintiff had permission/approval from the Administrative Tribunal to compromise the suit under the Code of Comunidade especially in absence of any statement to that effect in the compromise terms dated 19.11.1998 or any document to the effect filed along with the compromise terms. That the consent terms/agreement/compromise itself is fraudulent because it has been entered into without obtaining necessary

permission/approval, consent of the Administrative Tribunals required under Articles 154(3), 349 and 350 of the code of Comunidades and is therefore deemed to be void within the meaning of the explanation to the Rule 3 and as such not lawful. That the action of the said Jeronimo and Advocate for the plaintiff to agree to include Survey Nos. 90/1, 93/2, 93/3, and 93/4 is fraudulent because the lands surveyed the said numbers were not subjects matters of the suit and consequently the said fraudulent action renders the Consent Terms dated 19.11.1998 and the Order dated 21.11.1998 and the consequent Decree void, being nullity. That the clause in the compromise terms to agree to allot 40 plots each admeasuring about 252sq.mts. to certain 40 gaoncars who are not parties to the suit No.222/94/B is illegal, null and void rendering the compromise unlawful in the eyes of law and non-est. That the learned Judge exercised jurisdiction without satisfying himself about compliance of the relevant provisions of the Code of Comunidade as required under Rule 33 of Order XXIII. That the learned Judge ignored/overlooked that the Comunidade/plaintiff had not obtained approval/permission/authorization from the Administrative Tribunal. That the compromise terms dated 19.11.1998, the order dated 21.11.1998 holding that the compromise is lawful and consequent Decree dated 21.11.1998 are illegal and null and void for want of authority to the Special Attorney and the advocate for the Comunidade to compromise the suit. That the compromise dated 19.11.1998, the order dated 21.11.1998 holding that the compromise is lawful and the consequent Decree passed on 21.11.1998 is void under the Indian Contract Act 1872 and therefore is not deemed to be lawful within the meaning of Explanation to Rule 3 order XXIII of the Code of Civil Procedure. The plaintiff submits that the said suit filed by the gaunkars and application for recall of the decree filed by the plaintiff is still pending before the respective court. The plaintiff crave leave to refer and rely upon said plaint in the suit and application which will produced when required.

53. The plaintiff submits that as per the direction of the Hon'ble High Court in writ petitions No. 102/2009 under judgment dt. 18/2/2009, the Deputy Collector initiated enquiry and passed order dt 1/8/2011. The plaintiff submits that at this time other writ petitions no. 506/2009, 557/2009, 577/2009 and W. P. No. 657/2011 were pending before the honorable High Court.

54. The plaintiff submits that this order of the Deputy Collector dt. 1/8/2011 was produced before Hon'ble High Court in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011. Considering this order and the facts of

those petitions the Honorable High Court by judgment dt. 29/3/2012 dismissed these petition observing that the parties in the petitions will have to approach appropriate authority/Court as disputed facts are involved in the petition. It is to be noted that the order of the Administrator of Comunidade dt 3/7/2009 was not placed before the honorable High Court. The plaintiff crave leave to refer and rely upon the said Judgment dt. 29/3/2012 in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 and order of the Deputy Collector dt. 1/8/2011 which is produced in writ petitions no. 506/2009, 557/2009, 577/2009 and 657/2011 at **Annexure X.**

55. The plaintiff submits that thereafter, the plaintiff made representation to the Director of the Directorate of Settlement and Land Records Panaji dt. 9/10/2012 which was routed through Administrator of Comunidades, Panaji to issue corresponding certificate of the said property Oros and Saveli Gali based on Lotes as shown in the Planta de Cadastral of the Comunidade of Bambolim in order to establish that the suit properties are of the plaintiff. The same was issued by Superintendent of Survey and Land Record from the office of the Director of the Directorate of Settlement and Land Records, Government of Goa vide letter dt. 5/12/2012 along with the Plan. The plaintiff crave leave to refer and rely upon letter dt. 5/12/2012 and dt. 9/10/2012 which is produced at **Annexure "Y" Collectively.** The plaintiff submits that the said certificate shows as the original property under:-

- a. Lotes no.49 (Planta No. 15037) survey no. 93/1part, 93/4,93/3part,93/2part and 103/1 (part)
- b. Lotes no.48 (Adicao A) (Planta No. 15036) survey no. 93/1-A, 93/1(part) and part of road
- c. Lotes no.48 (Adicao B) (Planta No. 15036) survey no. 91/25(part), 91/26(part), 91/21(part), 91/22(part), 91/23(part), 91/24(part), 92/1, 92/1-A & part of road
- d. Lotes no.43 (Adicao A) (Planta No. 15036) survey no. 89/1(part), 89/3, 89/3-A, 89/3-B, 89/3-C, 89/3-D, 89/3-E, 89/3-F, 89/3-G, 87/2(part), 87/2-E(part), 87/2-D(part), 88/13(part), 88/21(part), 88/20(part), 88/6(part), 88/17(part), 88/16(part), 88/5(part), 88/15(part), 88/14(part), 88/2(part), 88/22(part) and part of road
- e. Lotes no.43 (Adicao B) (Planta No. 15036) survey no. 93/1(part), 93/2(part), 107/7(part), 107/11(part) and 107/8(part)
- f. Lotes no.43 (Adicao C) (Planta No. 15036) survey no. 89/1(part),
- g. Lotes no.43 (Adicao D) (Planta No. 15036) survey no. 90/1(part) & 90/2

h. Lotes no.47 (Planta No. 15036) survey no. 93/1 (part), 93/2(part), 106/1(part), 107/1(part) and 107/2(part)

56. The plaintiff submits that as stated above, the Comunidade is the rightful owner of the properties surveyed under Nos. 89/1, 2 and 3 90/1 and 2, 92, 93/1, 93/2, 93/3, and 93/4 which is clear from the entries in the Tombo Book 1, planta, auction proceedings, tenancy proceedings, Form II (Gunakar Book) of the Directorate of Settlement and Land Records (Area Book of Bambolim Village Tiswadi Taluka) and the various order in land Acquisition cases and the certificate dt 5/12/2012 issued by Inspector of Survey from the office of the Director of the Directorate of Settlement and Land Records, Government of Goa. The plaintiff submits that the entries in the Tombo Book I and the judgments of the Courts establish the title of the Comunidade to these properties which include present survey no. 89/1, 89/2, 89/3, 90/1, 90/2, 93/1, 93/2, 93/3, 93/4 and this proves that the property saveli galli, Oros were independent properties and not the properties mentioned in the purported certificate of the year 1904 relied upon by the defendant no.3 and her husband.
57. The plaintiff submits that it is seen that in the year 1982 survey no. 89 and 93 were sub divided as survey no. 89/1, 2 and 3 and 93/1, 2, 3, and 4 as per the judgment and order of the then Inspector of Survey and Records dt. 15th January 1982 on account of separation of the acquired land by the Government in Land Acquisition Case thereby retained survey No. 89/1, 89/2 as acquired properties and retained the unaquired land in 89/3 (part) and 93/1(part), 93/2 (part), 93/3 (part) and 93/4 (part) with the plaintiff and Survey no. 90 was bifurcated as survey No. 90/1 and 2 which is part of Lote no. 43 Adicao 'D' and is not fully acquired. The plaintiff submits that the entries in Tombo 1 and the judgment of the Court established the title of the Comunidade to these properties which were left without acquisition and it belong to the plaintiff. However in the compromise terms dated 19.11.1998, the order passed on 21.11.1998 and the Decree dated 21.11.1998 in Special Civil Suit No. 222/94/B before Civil Judge Senior Division at Panaji it was sought to be projected that these properties does not belong to the plaintiff and the plaintiff is relinquishing its rights in favour of the defendant no.3.
58. I say that after the judgment of the Hon'ble High court dt. 21/3/2012 the new managing committee of the plaintiff started investigating about the whole transaction and after inquiry it is revealed Special Civil Suit No. 15/01/A came to be instituted by Mr. Raghurai Tamba, defendant no. 5, the

power of Attorney of Mr. Dionisia Dias E Mergulhao defendant no. 3 herein before the Civil Judge Junior Division at Panaji against the original declared tenants in Tenancy Case no. CAJ/ARC/PRC/18/71 before the Mamlatdar who was Raiu Ishwar Gaunso predecessor of defendant no. 6 to 8 in respect of survey no. 89/3, 90/1 and 2. The plaintiff submits that it was found that the fraud was played in this suit which is apparent on the face of the record and there was collusion between the parties. I say that the same parties who have been declared to be tenants, (more particularly Raiu Ishwar Gaunso who had earlier filed a Civil Suit No. 127/1982/A before the Civil Court, wherein the Court had directed the Comunidade of Bambolim to pay 50% of the Land Acquisition compensation paid by the Government of Goa to them as they were declared tenants by the Mamlatdar) have made false statement. In this suit different stand was taken by them and it is declared that the defendants in the said suit do not have any right in the suit property. This decree is illegal and fraudulent decree to come out of the laws prohibiting development of tenanted property and in order to allow development and sale of the property by the defendant no.3 and 4. As on this date the defendant no. 4 had agreement executed in the year 1989 with the husband of defendant no. 3 and was holding their power of attorney. The plaintiff crave leave to refer and rely upon judgment and decree dt. 11/4/2001 which is produced at **Annexure "Z"**.

59. The plaintiff state that this suit instituted on behalf of defendant no.3 by defendant no. 5 against Raiu Ishwar Gaunso @ Chuddu Ishwar Gaunso and Mrs. Tulshi Ishwar Gaunso before the Civil Judge Junior Division at Panaji registered as Special Civil Suit No. 15/01/A came to be decreed and Judgment and decree dated 11/4/2001 pursuant to admission of the claims made by the said defendants with the direction that the name of Raiu Ishwar Gaunso@ Chuddu Ishwar Gaunso was to be deleted from Form I & XIV tenants column, under survey no. 90/1 of Bambolim Village. The plaintiff submits that by this decree a direction was obtained to the Mamlatdar to delete the name of Raiu Ishwar Gaunso from Form I & XIV of the property surveyed under survey no. 90/1 of Bambolim Village. I say that no order for deleting the name of Raiu Ishwar Gaunso could have been made because Raiu Ishwar Gaunso was declared to be a tenant under the Goa, Daman and Diu Agricultural Tenancy Act in case no. CAJ/ARC/PRC/18/71 and that the law specifically mandates that if at all tenancy rights have to be surrendered they have to be surrendered before the Mamlatdar under the Agricultural Tenancy Act, or, the persons have to obtain negative declaration as to the status of the tenants before the Mamlatdar under section 7 of the Goa Agricultural Tenancy Act. Besides this the defendant no. 3 to 5 did not

disclose agreement of sale dt. 29/8/1989 to the Hon'ble Court. Hence the defendant no. 4 and 5 played this fraud by suppressing the agreement of sale. This decree is being challenged by filing separate suit.

60. The plaintiff found that it is found that after this, three sale deeds dt 25/4/2006 registered under no. 1238, 1239 and 1240 Book I Volume No. 1634 dated 03/05/2006 in the Office of Sub Registrar of Ilhas at Panaji, Tiswadi-Goa executed between the defendant no.1,3 and 4 under which the plots under survey no. 93/2, 93/3 and 93/4 are said to be sold to the defendant no.1 and in this sale deed it is mentioned that the title flows from the purported certificate of the year 1904 to the defendant no.3 and the property Saveli galli, Oros, Bailem Fondiem, Cunbem Batta, Ohor, is one and the same property. It is mentioned in these sale deeds that subsequent to the death of Mr. Maximo Mergulaho on 26/03/1998 and in view of the Deed of Relinquishment dt. 13/05/1998 executed by his heirs relinquishing their rights in respect of the properties of late Maximo Mergulaho, Mrs. Dianisia Dias e Mergulhao, the vendor i.e. defendant no.3 became the sole owner of the said properties and selling the same to the defendant no. 1. The plaintiff crave leave to refer and rely upon the three sale deeds dt 25/4/2006 which is produced at **Annexure Z1**.
61. The plaintiff submits that in these sale deeds it is recorded that Alexandre Rodrigues had title to the properties as mentioned in the said sale deed claiming to be of suit property relying on certificate issued by Clerk Marcos Vicente D'Araujo of the year 1904. The sale deeds refers to the certificate of clerk which is in relation to following property namely;-
- a. 1/4th part of Verica of Bailem Fondiem.
 - b. Another 1/4th part of the said Verica.
 - c. Another Verica of cashew plantation and Ohor
 - d. One Xir of the property known as Bucolem.
 - e. One piece of coconut garden "Cornacho and two remaining pieces.
 - f. And further in another title: 5 pieces of coconut garden called Cunbem Batta.
 - g. And yet in another title one half of the first Verica called Bailem Fondiem.
 - h. 8 pieces owned jointly with his cousin Martinho Rodrigues and house-half and half.
 - i. One piece of coconut garden 'Cunbem Batta'.
 - j. And two Verica of cashew plantation known as "Bailem Fondiem" and that the following properties are found entered in the name of his daughter Maria Conceicao Rodrigues.
 - k. One Verica of cashew plantation.

- l. One piece of Coconut garden called 'Cunbem Batta'
 - m. One Fourth part of Verica Bailem Fondiem.
 - n. Another one fourth of Verica.
 - o. Five pieces of coconut grove called Cunbem Batta.
 - p. One half of the first Verica called Bailem Fondiem and Ohar
 - q. 8 pieces jointly held with her cousin Martinho Rodrigues.
 - r. House shared half and half.
 - s. 2 Verica of cashew plantation called Bailem Fondiem with exception of the plot one Xir of the property known as "Bucolem" and one piece of Coconut garden 'Cornacho" as it is sold to Sebastiao Figueiredo.
62. The plaintiff submits that it is mentioned in the sale deed that late Alexandre Rodrigues left behind his sole and universal heir Maria Conceicao Rodrigues. It is mentioned that Gregorio Germano Mergulhao married to Maria Conceicao Rodrigues and as such inherited the estate of late Alexandre Rodrigues. Further it is mentioned that the Gregorio Germano Mergulhao had two sons-Emmanuel Joveniano Paxiao Mergulhao and Francisco Aleixo Does Mergulaho and that Francisco Aleixo Does Mergulaho died a bachelor.
63. The plaintiff submits that in sale deed it is mentioned that after the demise of Emmanuel Joveniano Paxiao Mergulhao who was married to Maria Gertrudes de Pelagrina Viegas, Mr. Maximo Mergulaho and his wife Mrs. Dionisia Dias e Mergulhao became the sole heirs to inherit the estate left behind by their grandmother Maria Conceicao Rodrigues married to Gregorio Germano Mergulhao.
64. It is mentioned in the sale deed that subsequent to the death of Maximo Mergulhao on 26/03/1998 and in view of the Deed of Relinquishment dt. 13/05/1998 executed by the heirs of relinquishing their rights in respect of the properties of Mr. Maximo Mergulhao and Mrs. Dionisia Dias e Mergulhao became the sole owners of the said property.
65. The plaintiff submits that as stated in the preceding paragraphs of this plaint, the aforesaid certificate of the clerk referred in the sale deed is not in relation to the property "Saveli Gali or "Oros" and it is evident that the property Bailem Fondiem and Ohor, Cunbem Batta are separate and independent properties. This is evident from the fact that survey no.56 and its sub divisions is recorded as Bailem Fondiem. It is also found that the defendant no. 3 has executed deed of sale dt. 18/07/2007 as confirming party with M/s Milrock development company in respect of plot under

survey no. 52/8 of Village Bambolim which is shown as Verica Bhailan. The recital of this sale deed does not refer to any acquisition of title of the said property through any person. The records of the said survey number shows that in Form I & XIV the name of the property is recorded as Verica Bhailan. The plaintiff submits that the property under the said sale deed is part of the property Bailem Fondiem and is not related to the property Saveli Gali and Oros. The Plaintiff crave leave to refer and rely upon the sale deed dt. 18/07/2007 which is produced at **Annexure Z-2**.

66. The plaintiff submits that in the three sale deeds executed by the defendant no. 1, 3 and 4 it is falsely contended that property called Oros, Saveli Gali or Bailem Fondiem, Ohor is inherited by Maximo Mergulho, husband of defendant no. 3, as successor of late Alexander Rodrigues and Maria Conceissao Rodrigues. However as per the records of the plaintiff which is "Livro do Titulos", in the year 1939 the part of the property called Bailem Fondiem, Ohor were leased to late Maria Conceisao Rodrigues. This certificate does not mention the name of the property as "Saveli Gali or Oros. Thus the property mentioned in the records of the Comunidade in the year 1939 in the name of Maria Conceisao Rodrigues was different property and it was only a lease given to Maria Conceisao Rodrigues. Hence Alexander Rodrigues or his daughter Maria Conceisao Rodrigues did not acquire any title or ownership right in the property Saveli gali, Oros or any property of the plaintiff. In fact records of the plaintiff shows that in the year 1970 last auction was held in relation of property Saveli Gali , Oros and other properties of the plaintiff and several persons claimed tenancy rights before the Mamlatdar, which proves that the property Saveli Gali and Oros were never possessed by defendant no. 3 or her late husband and their predecessors.

67. The plaintiff submits that as per the records of the Comunidade in the year 1939 the daughter of late Alexander Rodrigues namely Maria Conceisao Rodrigues paid 20 years FORO by receipt no. 44 in respect of the property mentioned in purported certificate of the year 1904 which was leases to her father late Alexander Rodrigues and Maria Conceisao Rodrigues were never allotted the property of the Comunidade to acquire right of ownership. The plaintiff submits that considering this records of the Comunidade, it is clear that late Alexander Rodrigues and Maria Conceisao Rodrigues were never owners of the property mentioned purported in the certificate dt. 1904 or 1939 relied upon by the defendant no. 1, 3 and 4 and what was given to them was a lease of different property and not the property called Oros and Saveli Gali. Therefore they were not owners of any of the property belonging

to the Comunidade and no rights of ownership was acquired by late Alexander Rodrigues or Maximo Mergulau to the property called Oros and Saveli Gali which are under lote numbers referred above and the new survey numbers referred above which include survey no. 93/2, 3 and 4 of village Bambolim. Hence the sale deeds executed by defendant no. 1, 3 and 4 are without authority, right, title and does not convey any right of ownership of the suit property to defendant no. 1.

68. The plaintiff submits that the certificate of the Clerk of the Comunidade relied upon by the defendant no.1, 3 to 5 as title document is not in relation to suit property "Saveli Gali" or "Oros". There is no records of allotment or lease of the year 1904 with the plaintiff and the records of 1939 shows that it is in relation lease for auction of part of different properties of the Comunidade and there is no grant by following the due procedure in favour of late Alexandre Rodrigues from whom the defendant no. 3 and her husband claimed inheritance. This certificate do not show that the payment is made in respect of suit property but the same is in respect of different small plots in the property called Bailem Fondem and Ohor and Cumbem bhat. In the three sale deeds it is deliberately mentioned that the property sold is called as Saveli gali, Oros Bailem Fondem or Ohor when in fact all three names are of different independent properties of the plaintiff and the property Saveli Gali is not referred in the purported certificate of the Clerk of the Comunidade of the year 1904 which is relied upon by the defendant no. 3 and now by defendant no. 1. The plaintiff has records of action of 1971 referred above wherein the property Saveli galli and Oros were auctioned and claim of tenancy was made by various persons, which establish that these properties were never allotted to late Alexandre Rodrigues in year 1904. The plaintiff has records of 1939 which shown that in the year 1939 Foro was paid by Mario Conceicao paid towards lease of part of property which is different property. However this record is not grant of property Saveli Gali and Oros. Hence the said certificate does not confer any right in favour of any person. Hence the plaintiff is entitled for a declaration that the said certificate is not title certificate in respect of property Saveli Gali and Oros including survey no. 93/2,3 and 4 of Village Bambolim.

69. The plaintiffs submits that it was also found that after executing the sale deeds the defendant no.1 filed another Regular Civil Suit No. 6/07/C before Civil Judge Junior Division at Panaji against the legal representatives of the original declared Tenants in Case no. CAJ/ARC/PRC/10/AND-11/71 predecessors of defendant no. 6 to 19 who are successors of Parshuram

Kunkolienkar, Luis Rosario, Sebastiao Gomes and Bicarior Gomes. In this suit the defendant no. 1 has claimed to have purchased the land under survey no. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi Taluka under the said sale deeds. The plaintiff submit that the Regular Civil Suit No. 6/2007 was filed on 20/1/2007 and within 5 days on the first date of hearing itself the consent decree is passed. The plaintiff crave leave to refer and rely upon Annexure colly" **Annexure "Z-3"** is the copy of the compromise decree dated 25/1/2007 in Regular Civil Suit No. 6/2007/C before Civil Judge Senior Division at Panaji. The plaintiff submits that the terms of the said decree in Regular Civil Suit NO.6/2007/A are as under:-

70. That the defendant admit that the plaintiff is the exclusive owners in possession of the suit properties totally admeasuring 97,500 sq mts bearing survey no. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi Taluka. Accordingly this Hon'ble Court be pleased to pass a judgment, order and decree declaring that the plaintiff is the exclusive owner in possession of the suit property.
71. That the defendant admits that the entries in the column "name of the tenants" of the survey records of the suit properties is erroneous. The defendant declares that defendant no. 11 is the one whose name is erroneously recorded at serial no. 1. Defendant no. 1, 3 and 5 are the only successors of Purshoram Cunculkar whose name is erroneously recorded at serial no. 2. Defendant no. 7, 8, and 10 are the only heirs of Bikaro Gauns whose name is erroneously recorded at serial no. 3 and defendant no. 13 is the only heir of late Sebastiao Gomes whose name is erroneously recorded as serial no. 4. The defendants have no objection for deletion of said erroneous entries in the tenants column of the survey records of the suit properties. The defendants shall file appropriate application before the deputy collector of Tiswadi for deletion of said erroneous entries within 10 days from today. Accordingly the honourable Court may be pleased to declare by judgment order and decree that, the entries in the Column "name of the tenant" of the survey records of the suit property bearing survey nos. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi, Taluka as erroneous and for further declaration that, the same are liable to be deleted, canceled and struck out.
72. That the defendants undertake that they shall not interfere in whatsoever manner with the suit properties in any manner in whatsoever and that they have no claim whatsoever against the plaintiffs and or the original owner of the suit properties and accordingly this Hon'ble Court be pleased to pass

judgment order and decree of permanent injunction restraining the defendant, their friends, agents, servants, relatives or any person or persons acting or purporting to act on behalf of the defendant from interfering with the suit property bearing survey nos. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi, Taluka in any manner in whatsoever or from interfering with the plaintiff, or workers, supervisors, security staffs, contractors etc. of the plaintiff or from interfering in any manner with the plaintiffs enjoyment and possession of the suit properties in any manner whatsoever and or from interfering with the developmental activities of the plaintiff carried out by the plaintiff in the suit properties bearing survey nos. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi, Taluka in any manner in whatsoever..The plaintiff undertake to allot one plot each to each group of defendants admeasuring 500 sq mts in survey no. 93/2 as per the convenience of the plaintiff, within a period of one year from today. It is clarified that defendants 1 to 6 shall be allotted one plot of 500 sq mts. Defendant 7 to 10 shall be allotted one plot of 500 sq mts. Defendant no. 11 and 12 shall be allotted one plot of 500 sq mts. And Defendant no. 13 and 14 shall be allotted one plot of 500 sq mts.

73. I say that in the aforesaid two suits, namely Special Civil Suit No. 15/01/A and Regular Civil Suit No. 6/07/C the defendant no. 6 to 19 and others who were declared as deemed owners by the Mamlatdar under the Goa, Daman and Diu Agricultural Tenancy Act in case no. CAJ/ARC/PRC/18/71 and in tenancy case no. CAJ/ARC/PRC/10/AND-11/71, have declared that they have no right of tenancy and defendant no.3 and 1 have obtained a negative declaration that they are not tenants of the suit land belonging to the Comunidade of Bambolim. The plaintiff state that the Mrs. Deonisia Dias e Mergulhao i.e. defendant no.3 was represented by the defendant no.5 and defendant no. 3 is party in Special Civil Suit No. 222/94/B and Special Civil Suit No. 15/01/A and they were very well aware that if at all the tenants had to surrender their tenancy rights under the Goa, Daman and Diu Agricultural Tenancy Act then they have to go before the Mamlatdar.

74. I say that the above suits have been filed by the defendant no. 1,3, and 4,5 to overcome the obstacle prohibition under the Goa Land Use (Regulations) Act 1991, which prohibits agricultural tenanted land to be used for any other purpose. I say that the parties in the Special Civil Suit No. 15/01/A and Regular Civil Suit No. 6/07/C, have grossly abused the process of Court by using the Civil Court to obtain a judgment and decree for recording the pure commercial agreement between the parties which is

prohibited, so that at the same time in directly selling agricultural tenanted land for construction, which is prohibited under the law. The Regular Civil Suit no. 15/2011/A was filed on 12/2/2001 and disposed on 11/4/2001 which is within a period of two months. The plaintiff submit that the Regular Civil Suit No. 6/2007 was filed on 20/1/2007 and within 5 days on the first date of hearing itself the consent decree is passed. This shows that both the suits were filed with all preparations and understanding between the parties before hand. The agreement of sale dt 29/8/1989 with the defendant no.4 was suppressed. The plaintiff state that for the aforesaid reasons, and the circumstances it lead to only one conclusion that the parties were acting in collusion with each other for the purpose of obtaining the Decree with ulterior motive and for that reasons, I say that the Judgment and Decree obtained by collusion, fraud and one void ab initio. Therefore these two decrees are required to be declared as illegal.

75. I say that order of deleting the name of Parshuram Cunchorkar, Luis Rosario, Sebastiao Gomes and Bicario Gomes could not have been made because Parshuram Cunchorkar Luis Rosario, Sebastiao Gomes and Bicario Gomes were declared to be a tenants under the Goa Daman and Diu Agricultural Tenancy Act in Tenancy Case NO. CAJ/ARC/PRC/10/AND-11/71 and that the law specifically mandates that if at all tenancy rights have to be surrendered they have to be surrendered before the Mamlatdar under the Agricultural Tenancy Act, or, the persons have to obtain a negative declaration as to the status of the tenants before the Mamlatdar under section 7 of the Goa Agricultural Tenancy Act.

76. I say that in both the suits the defendants have been declared not to be tenants of lands belonging to the Comunidade of Bambolim without making plaintiff as party and without any title to the said property, which is contrary to orders of declaration made in Case NO. CAJ/ARC/PRC/18/71 and Case NO. CAJ/ARC/PRC/10/AND-11/71 obtained by those defendants before the Mamlatdar under section 7 of the Goa Daman and Diu Agricultural Tenancy Act. I say that these decrees could not have been passed since the decree in Regular civil Suit No. 224/94 was fraudulently obtained and in the said suit no title document are produced. The plaintiffs therefore, state that the judgment and decree made in terms of the consent terms before the Civil Court in Special Civil Suit No. 15/2001/A and Regular Civil Suit no. 6/07/C is without jurisdiction, illegal, null and void I say that in these circumstances the plaintiffs is entitled for a judgment and Decree

declaring the said judgment and Decree is without jurisdiction, illegal and void ab initio.

77. The plaintiff submits that the fraud is further substantiated by the fact that after enquiry it is found that the husband of the defendant no. 3 had an agreement for sale dt. 29/8/1989 with defendant no.4. The plaintiff could get the copy of the said agreement in the month of November 2012 under letter dt 31/10/2012 from Village Panchayat Cuca, Bambolim, Talaulim. The said agreement is in relation to survey no.89/3 and it is mentioned in the said agreement that the defendant no. 4 shall develop the said property. However in the compromise Decree in Regular Civil Suit NO. 222/ 94 and Regular Civil suit NO. 15/2001/A, 6/2007/C this agreement has not been disclosed which is a clear proof of fraud. The plaintiff crave leave to produce agreement for sale dt. 29/8/1989 which is marked as **Exhibit Z-4**. The plaintiff submits that the said agreement is illegal as the said property does not belong to defendant no. 3 or her husband. Hence the said agreement is required to be declared as illegal for which the plaintiff shall file separate suit.

78. The plaintiff submits that Form II (Area Book of Village) of the Directorate of Land Survey Department at the time of initial survey of New Cadastral Plan (1972-73) in survey NO. 93, 89 and 90 incorporated Comunidade of Bambolim as the owner with authenticated signature at Column no. 10 of Form II. The plaintiff submits that Comunidade Plan of Lote No. 43, 47, 48 and 49 are also available on records with Government Department i. e. Directorate of Settlement and Land Records which is authenticated which shows that the suit property belongs to the plaintiff and was not granted to any other person. The plaintiff submits that Lote No. XXX Horta da Vigario (Vigarochi Gal) now under survey no. 103/1, 2, 104/1 originally owned by plaintiff and which was allotted to Fabrica da Igreja de Bambolim shows that at one side it has boundaries of Lote No. 47 and 49. However statements made in the Sale Deed relied upon by the defendant no. 1, 3 and 4 is by misrepresentation. It is found that the company of defendant no. 1 by sale deed dt. 24/4/2006 has purchased this plot under survey no. 103/1,2 and 104/1. The plaintiff crave leave to produce sale deed dt. 24/4/2006 which is marked as **Annexure Z-5**.

79. The plaintiff submits that therefore the sale deeds executed by the defendant no. 1 with defendant no. 3 and 4 do not confer any title on the defendant no. 1. Considering these facts, fraud played by the defendant no.1,3 to 5 and

documents of title of the plaintiff, the plaintiff is entitled to be declared as owner of the suit property and the plaintiffs is entitled for a judgment and Decree declaring the said 3 sale deeds dt. 25/4/2006 executed by the defendant no. 1 with defendant no. 3 and 4 are illegal, null and void ab initio.

80. The plaintiff submits that on the basis of the sale deeds the defendant no.1 has got his name included in the survey records. This is illegal and the name of the defendant no.1 has to be deleted from the survey records. The plaintiff crave leave to produce Form I & XIV of survey no. 93/2, 3 and 4 which is marked as **Annexure Z-6**.

81. I say that the defendant no 1 is illegally claiming the suit property. The defendant no.3 or her predecessors were never in possession of the suit property which is evident from the fact that during Land Acquisition Proceedings the husband of defendant no. 3 could not establish title and various persons had claimed to be tenant of the suit property and the plaintiff had auctioned the produce in the suit property in the year 1970. Besides this the compensation after acquisition of the land of the original property Oros and Saveli Gali under survey no. 89/1, 93/1 is paid to the plaintiff as mentioned in the foregoing paragraphs. The plaintiff submits that only on the basis of the illegal compromise decree in special Civil suit no. 224/94 and sale deeds executed by the defendant no. 1 the possession is claimed by defendant no. 1, 3 to 5. Therefore the defendant no. 1 does not have any right in the suit property and the sale deeds are executed without any title with the defendant no.3 and 4 and possession claimed by the defendant no.1 is illegal which is based on fraudulent sale deeds. The defendant no.1 is now trying to develop the suit property. In these circumstances the plaintiffs is entitled for a judgment and Decree of permanent injunction to stop all the activities and directing the defendants no. 1 to hand over vacant possession of the suit property to the plaintiff.

82. Without prejudice to above, the plaintiff submits that the Miscellaneous civil application no. 6/2010 for recall of decree in special civil suit no.224/1994 is pending and in terms of the said decree in Regular Civil Suit NO. 222/1994 the defendant no. 3 and 4 were not entitled to sale the suit property. The said decree states that the plots were to be given to the plaintiff, Gaonkars and until the plots are given, the defendant no. 3 shall not be entitled to sell the suit property. The application to recall the said decree is pending and in any event the said decree has not been satisfied

and has not become final. Therefore the sale deeds could not have been executed by the defendant no. 3 and 4 in respect of the suit property with the defendant no.1. Besides this in the said consent decree in Regular Civil Suit NO. 222/1994, it is not mentioned that the defendant no.3 is owner of the property under survey no. 93/2, 3, 4 and the defendant no. 4 has not disclosed agreement dt. 29/8/1989 in respect of the said area under survey no. 89/3. Therefore the sale deeds are executed by playing fraud. Hence the said sale deeds are illegal, null and void.

83. The plaintiff submits that the defendant no. 1 has obtained various permissions based on the sale deeds which are in this suit. The plaintiff craves leave to challenge the said permissions by filing appropriate proceedings since the defendant no.1 has no title to the suit property as stated above and there is a fraud played by filing various suits and by executing sale deeds by defendants no. 1 to 5. The plaintiff shall file separate proceedings challenging the permissions obtained by the defendant no.1 after following the due process of law.

84. The plaintiff submits that after the order of honorable High Court in W.P. No. 102/2009 the administrator of comunidade had passed order dt 3/7/2009 observing that there is fraud and the comunidade should initiate proceedings. However the managing committee holding the charge at this particular time only filed application for recalling the decree in Regular Civil Suit No. 224/1994 and at this time writ petition no. 506/2009, 557/2009, 577/2009 and 657/2011 filed by the Gaunkars were pending before the Hon'ble High Court. The said petitioners were decided on 29/3/2012 by the Hon'ble High Court observing that the parties should approach Civil Court. The present managing committee took over charge in March 2013 and found that action has to be taken in the matter. The plaintiff submits that therefore in the month of March 2013 the plaintiff engaged one advocate to initiate proceedings in respect of the suit property. Said advocate issued public notice dt 31/1/2013. The defendant no. 1,3,4 filed reply dt. 21/2/2013 and 15/2/2013 respectively to this notice denying the claim of the notice. However the defendants have not produced any title documents and are relying on the only certificate of the clerk of the Comunidade. The plaintiff craves leave to produce public notice published in Navhind Times dt. 21/1/2013 and reply dt. 15/02/2013 and 21/2/2013 which are produced and marked as **Annexure Z-7 Collectively**. The plaintiff's managing committee thereafter verified the record and found that a systematic fraud has been committed on the comunidade. The present Managing Committee

therefore took legal advice and were advised that the Comunidade has to file suit challenging the sale deeds, decree passed in Civil Suits and for recovery of possession of the suit property and stop illegal development. The present Managing Committee thereafter procured various documents and decided to file the proceedings.

85. The plaintiff also engaged a surveyor to verify the plans of the Comunidade and present survey numbers to confirm the identity of the property. The surveyor after verification of the documents, planta no.15035,15036,15037 and present survey plan has confirmed that the present survey numbers namely survey no. 89/1, 2,3, 93/1 to 4, 90/1 and 2 are the survey numbers given to original property under planta no. 15036 and 15037 called Saveli Gali and Oros. The plaintiff submits that surveyor Mr. Prazeres A. Gonsalves opined that the part of the property under survey no. 93/2 (part) of village Bambolim is part of the property of Lote no.43 'B' called "OROS" and Lote no.47 "SAVELI GALI" and the property under survey no. 93/3(part), 93/4 (part) of village Bambolim is part of the property of Lote no.49 called "Saveli Gali" in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property. The plaintiff craves leave to refer and rely upon the said survey report dt .24/10/2013 alongwith the plan prepared by Mr. Prazares Gonvales which is marked as **Annexure Z-8**. The plaintiff submits that the part of the survey number 93/3 is shown as Lote No. 49 since remaining part is also the part of the property of the plaintiff.

86. The plaintiff submits that the survey records under section 105 of Land Revenue Code, are presumptive and correctness of entries can be disputed and proved by producing title documents. It is well settled that the survey records do not confer "Title". According to the present survey, the properties under survey no. 93/2, 93/3 and 93/4 are part of original survey no. 93 called Saveli gali and Oros which belonged to the plaintiff and the said survey does not mention that survey holdings granted as "Aframento" to the husband of the defendant no. 3. The purported certificate of the Clerk is not enough to show "Subsisting Title" with the defendant no. 1 and 3. . After examining the records and taking legal advice the plaintiff made an application dt. 17/7/2013 and 19/9/2013 to the Honorable Administrative Tribunal for permission to file suit. Accordingly the permission has been granted on 8/10/2012 and 15/10/2013 and the present suit is filed.

87. The plaintiff submits that under order dt. 3/7/ 2009 the Administrator of Comunidade held that there is a fraud played and the comunidade

should take legal action. The plaintiff thereafter filed an application to recall the consent decree in special civil suit no. 224/1994 which is registered as Miscellaneous civil application no. 6/2010/B. The plaintiff submits that as per direction of the Hon'ble High Court Dy collector passed order dt. 01/08/2011 holding that there is tenant in survey no. 90/1 and there is no tenant in other survey numbers against which appeal filed by defendant no.3 as well as the plaintiff is pending before the Administrative Tribunal.

88. I say that considering the fraud played by defendant no. 1,3 to 5 the plaintiff is entitled for the Judgment and Decree declaring that the part of the property under survey no. 93/2 of village Bambolim is part of the property of Lote no. 43 'B' called "OROS" and Lote no.47 "Saveli Gali" and the property under survey no. 93/3 and 93/4 of village Bambolim is part of the property of Lote No. 49 called "Saveli Gali" and other property of Plaintiff in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property
89. I say that the plaintiff is entitled for the Judgment and Decree declaring that the three sale deeds dt 25/4/2006 registered under no. 1238, 1239 and 1240 Book I Volume No. 1634 dated 03/05/2006 in the Office of Sub Registrar of Ilhas at Panaji, Tiswadi-Goa executed between the defendant no.1,3 and 4 do not confer any title to the defendant no. 1 and these sale deeds are illegal and void ab initio and the same are liable to be ordered to be cancelled..
90. I say that the plaintiff is entitled for the Judgment and Decree declaring the inclusion of the name of the defendant no. 1 in the property under survey no. 93/2, 93/3, 93/4 of village Bambolim is illegal and the name of the defendant no.1 has to be ordered to be deleted and the plaintiff's name has to be ordered to be included in the said survey records.
91. I say that the plaintiff is entitled for the Judgment and Decree declaring that Decree in the compromise decree dated 25/1/2007 in Regular Civil Suit No. 6/2007/C before Civil Judge Senior Division at Panaji is without jurisdiction, illegal and void ab initio and not binding on the plaintiff .
92. I say that the plaintiff is entitled for the Judgment and Decree directing the defendant no.1 and 2, their agents servants or any other person claiming through them to hand over the vacant possession of the suit property under survey no. 93/2, 93/3, 93/4 of village Bambolim to the plaintiff .
93. I say that the plaintiff is entitled for Judgment and Decree of permanent injunction restraining the Defendants no.1 and 2 their agents servants or

any other person claiming through them from starting any development and construction activities in the suit property, changing the nature of suit property and alienating, transferring the suit property in any manner. During the pendency of the suit the plaintiff is entitled for temporary injunction for which separate application is filed.

94. I say that the cause of action to file the present suit arose on 29/3/2012 when the Hon'ble High Court observed that the parties should approach Civil Court and after investigation it is found that there is fraud played on the Comunidade by defendant no. 1 to 5. It is settled principle of law that the fraud vitiate all the action and documents. Hence the suit is not barred by limitation as stated above. The plaintiff submits that the Comunidade is managed by the elected managing committee and has to file the proceedings. The present Managing committee was elected and took charge in March 2013. After that the Managing committee took legal advice and made investigation. In view of observation of the Hon'ble High Court in judgment dt. 29/3/2013 in Writ Petition No. 506/2009, 557/2009, 577/2009 and 657/2011 and after details examination of the documents it is found that there is fraud played on the plaintiff by collusion with the person claiming to be tenants of the Comunidade by defendant no. 1, 3 to 5 and the property of the Comunidade has been allowed to be taken away without following due process of law and causing loss to the Comunidade.

94(A) The plaintiff submits that after filing of the suit the plaintiff had published public notice on 30/10/2015 and 31/10/2015 in Daily Navhind Times and daily Herald. After this the plaintiff came across reply published by defendant no. 1 in daily Navhind Times on 4/11/2015 and by defendant 6 on 5/11/2015. Similarly the plaintiff received caveat application dated 3/11/2015 from one M/s Loonkar Developers Pvt. Ltd. A Company incorporated under the Indian Companies Act, 1956, having its registered office at 219, Commerce House, 140, Nagindas master Road Fort Mumbai and represented in this act by its Authorizes Signatory Mr. Meghal B. Jain, aged 34 years, son of Bhabukamal L. Jain, in service, resident of 601/602, Uttam Villa, Daulat Nagar, Road No. 10, Borivli (E), Mumbai 66, to submit the sale deed. The plaintiff replied to the said caveat and called upon the said company to furnish the copy of the sale deed. However the same was not replied by the said company. The plaintiff verified in the office of Sub-Registrar at Panjim and applied copy of the sale deed which was issued on 16/3/2016 which is produced herewith. From the said sale deed it is found that defendant no. 1 and 2 have sold part of the suit property under survey no. 93/2 of village Bambolim admeasuring 35,600 to M/s Loonkar

Developers Pvt. Ltd who has been joined as defendant no. 20 in the present suit. It is found from the said sale deed that there was agreement dt 12/11/2012 prior to the sale deed which is suppressed by the defendant no. 1 and 2 while filing written statement. The plaintiff submits that the said agreement and sale deed is illegal, null and void and could not have been executed by the defendant no. 1 and 2 as the rights of defendant no. 1 and 2 are challenged by the plaintiff in the present suit which is pending. Such sale deed which is executed during the pendency of the suit is bad in law and liable to be declared null and void and required to be cancelled. Therefore the plaintiff challenge the said sale deed in this suit. The defendant no. 20 is not entitled to do any construction in the suit property and therefore plaintiff is entitled for a judgment and decree of permanent injunction restraining the Defendants no. 20, their agents, servants or any other person acting through them from starting any development and construction activities or, changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2 of village Bambolim in any manner.

94(A) The plaintiff submit that the defendant no. 1 and 2 by letter dated 20/11/2020 gave proposal for settlement transfer and deliver an area of 5000 Sq.mts (Five Thousand square meters) of developed land with conversion sanad under survey no. 93/2 of Village Bambolim to the plaintiff and to pay to the plaintiff an amount of Rs. 10,00,00,000/- (Rupees Ten Crores Only) and construct cultural/sports arena. This proposal was discussed by the Managing Committee in its meeting dated 6/12/2020 and the proposal was placed before the general body meeting held on 3/1/2021 and the general body after discussion agreed to settle the dispute in respect of the property admeasuring 97,500 sq mts under survey no. 93/2,3,4 of village Bambolim in the best interest of the Comunidade after considering all the relevant aspects and long pending litigation. Accordingly the plaintiff has agreed to settle the dispute on following terms:

i. Towards settlement of the claim of the plaintiff to the property admeasuring 97,500 sq mts under survey no. 93/2,3,4 of village Bambolim, the defendants no. 1 and 2 alongwith defendant no. 20 i.e. M/S Loonkar Developers shall transfer and deliver an area of 5000 Sq.mts (Five Thousand square meters) of developed land with conversion sanad under survey no. 93/2 of Village Bambolim to the

plaintiff free from any encumbrances and by marking on the plan to be annexed to the consent terms and defendant no. 1 and 2 shall pay to the plaintiff an amount of Rs. 10,00,00,000/- (Rupees Ten Crores Only) by demand draft drawn in favour of Comunidade of Bambolim.

ii. The defendants no. 1 and 2 shall also construct mesh wire fencing around the said area of 5000 sq. mts. (Five Thousand square meters) which shall be owned by the plaintiff and the defendant No.1 & 2 shall construct/sport arena with structures namely stage with changing rooms, two separate wash rooms for gents and ladies, basket ball court, badminton court and volleyball court at their own cost within a period of 15 months from the date of approval and license from the Town and Country planning Department and Village Panchayat Bambolim. The cost of the drawing of plans of the said structure for obtaining approval shall be borne by the defendant no. 1 and 2. However the procedure of obtaining approval and license for construction shall be completed by the plaintiff within a period of 15 months. In case the defendant no. 1 and 2 fail to carry out the construction of the sports/cultural arena with structures mentioned herein above within 15 months of obtaining the approval and license, then the defendant no. 1 and 2 shall be liable to pay compensation of Rs. 2,00,00,000/- (Rupees Two Crores Only) within one month after expiry of 15 months and the plaintiff shall proceed with construction of structures namely stage with changing rooms, two separate wash rooms for gents and ladies, basket ball court, badminton court and volleyball court on their own.

iii. The defendants no. 1 and 2 alongwith defendant no. 23 i.e. M/s Loonkar Developers shall declare that there is no mortgage or any type of encumbrance or liability of the said land to the bank of Maharashtra or any other bank, financial Institution and there is no agreement of any nature with any third party in relation to said area transferred to the plaintiff. The said plot of 5000 sq. mts. (Five Thousand square meters) is identified after inspection which is bounded towards east by Public Road, towards west by remaining part of survey no. 93/2, towards south by survey no. 103, towards north by remaining part of survey no. 93/2. This area/plot shall be

partitioned as per the provisions of the Land Revenue Code 1968 and new survey number shall be obtained in the name of the plaintiff as an absolute owner and the cost of the proceedings same shall be paid by the defendant no. 1 and 2.

iv. In view of the settlement of dispute in respect of survey No. 93/2, 3 and 4 of village Bambolim the ownership rights of the Comunidade of Bambolim in survey no. 93/2, 3 and 4 shall vest in the defendant no. 1, 2 and 3 as claimed by them. The plaintiff Comunidade shall drop and withdraw the proceedings against the defendant nos. 1, 2 and M/s Loonkar Developers in CMA no. 6/2010/B pending before Civil Judge Senior Division at Panaji, Civil Suit 66/2009 pending before District Court at Panjim, LRC case no. 19/2009 pending before the Deputy Collector at Panaji, and all other cases or complaints in respect of survey No. 93/2, 3 and 4 of village Bambolim by filing appropriate application for deletion or withdrawal of claim or amendment in the said proceedings and the defendant no. 1 and 2 and defendant no. 20 i.e. M/s Loonkar Developers shall be entitle to proceed with the development of the remaining area under survey No. 93/2, 3 and 4 of village Bambolim excluding 5000 sq. mts. (Five Thousand square meters) owned by the plaintiff without any claim of the plaintiff in respect remaining area of survey no. 93/2, 3 and 4 of village Bambolim.

v. It is decided by the plaintiff that the settlement of dispute in this suit is only in respect of survey No. 93/2, 3 and 4 of village Bambolim and the Comunidade shall proceed with the dispute and litigation in respect of the claim of ownership and possession of the Comunidade of Bambolim to the land under survey No. 89/3 admeasuring 26,825 sq. mts. and 90/1 admeasuring 5650 sq. mts. of village Bambolim including Special Civil suit no. 4/2014/A, CMA no. 6/2010/B, Civil Suit 66/2009 pending before Civil Court and District Court at Panjim, LRC case no. 19/2009 pending before the Deputy Collector at Panaji, and all other cases or complaint in respect of survey No. 89/3 and 90/1 of village Bambolim.

Vi. In view of the settlement the defendant no. 1 and 2 shall withdraw Revision application no. 41/2016 and 46/2018 pending

before the Hon'ble High Court and shall not have any claim whatsoever against the plaintiff.

vii. The plaintiff shall declare that they have no claim against defendant no. 1 and 2 and defendant no. 20 i.e. M/s Loonkar Developers in respect of the remaining part of survey no. 93/2, survey no. 93/3 and 4 of village Bambolim and 5000 sq. mts. under survey no. 93/2 is allotted to the plaintiff and amount is paid as per this settlement which is signed after discussions and mutual agreement and decree passed by this Hon'ble court shall be binding on the parties and shall be executable in law by both the parties.

94(B) the plaintiff submit that the above settlement is accepted by the plaintiff and the defendants which is arrived at after filling of the suit which is an agreement binding on the plaintiff and the defendants. In pursuance of the said agreement the plaintiff has deleted the other defendants in the suit. Therefore the plaintiff is entitled for specific performance of the said agreement by the defendants and therefore the plaintiff is making alternative prayer from this Hon'ble Court directing the defendant no.1 and 2 and 3 to hand over the vacant possession of the plot of 5000 sq. mts. (Five Thousand square meters) in suit property under survey no. 93/2 of village Bambolim to the plaintiff along with an amount of Rs. 10,00,00,000/- (Rupees Ten Crores Only) as well as to construct/sport arena with structures namely stage with changing rooms, two separate wash rooms for gents and ladies, basket ball court, badminton court and volleyball court at their own cost within a period of 15 months from the date of approval and license from the Town and Country planning Department and Village Panchayat Bambolim.

94(C) The plaintiff submit that the cause of action for above relief has occurred in view of settlement proposal dated 20/11/2020 which is accepted by the plaintiff in its General body meeting dated 03/01/2021 and the plaintiff has acted upon the same. Hence the same is within time.

95. The plaintiff has not taken out any other proceedings in this Hon'ble Court, Hon'ble High Court, Supreme Court or any other court in respect of the subject matter of this suit. However civil suit no.66/2009 filed by B. B. A D'Souza and another before Honorable District Court and Miscelinous Civil Application No. 6/2010/B filed by the Plaintiff is pending before this Honorable Court. The plaintiffs has not filed any other suit on the same cause of action and subject matter/prayers made in this suit.

96. For the purpose of valuation and Court fee the prayers at valued at Rs. 100,00,00,000/- (Rupees one hundred crores only)- and the maximum Court fee of Rs. 15,000/- is affixed hereto.

97. The suit property is located at Village Bambolim, Tiswadi Taluka which is within the jurisdiction of this Court and therefore this Court has jurisdiction to entertain and try the present suit.

98. The plaintiffs shall rely upon documents, a list whereof is annexed herewith.

99. For the purpose of service, the addresses of the plaintiffs and defendants is as per the memo of addresses annexed hereto.

100. The plaintiff has not received any caveat from the defendants ..

101. The plaintiff therefore prays:-

PRAYERS

- a. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the suit property admeasuring 97,590 sq mts is part of the property namely under survey no. 93/2 of village Bambolim is part of the property of Lote no. 43 'B' called "OROS" and Lote no.47 "Saveli Gali" and the property under survey no. 93/3 and 93/4 of village Bambolim is part of the property of the original property of the plaintiff under Lote No. 49 called "Saveli Gali" and other property of the plaintiff in village Bambolim, Tiswadi Taluka of State of Goa and the plaintiff is owner of the said property

(i.1) This Hon'ble Court may be pleased to declare that the sale deed dated 14/7/2014 along with agreement dt 12/11/2012 executed by defendant no. 1 and 2 in favor of defendant no. 20 is null and void and the same may be ordered to be cancelled.

(i.2) This Hon'ble Court may be pleased to pass judgment and decree of permanent injunction restraining the Defendants no. 20, their agents, servants or any other person acting through them from starting any development and construction activities or, changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2 of village Bambolim in any manner.

(i.3) That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass an order of temporary injunction restraining the Defendants no. 20, their agents, servants or any other person acting through them from starting any development and construction activities or, changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2 of village Bambolim in any manner.

a.1) That this Hon'ble Court may be pleased to pass a Judgment and Decree directing the defendant no.1 and 2 and 3 to hand over the vacant possession of the plot of 5000 sq. mts. (Five Thousand square meters) in suit property under survey no. 93/2 of village Bambolim to the plaintiff along with an amount of Rs. 10,00,00,000/- (Rupees Ten Crores Only) as well as to construct/sport arena with structures namely stage with changing rooms, two separate wash rooms for gents and ladies, basket ball court, badminton court and volleyball court at their own cost within a period of 15 months from the date of approval and license from the Town and Country planning Department and Village Panchayat Bambolim.

b. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the three sale deeds dt 25/4/2006 registered under no. 1238, 1239 and 1240 Book I Volume No. 1634 dated 03/05/2006 in the Office of Sub Registrar of Ilhas at Panaji, Tiswadi-Goa executed between the defendant no.1,3 and 4 in respect of the suit property under survey no. 93/2, 93/3 and 93/4 of village Bambolim are illegal, null and void ab initio and the same may be ordered to be cancelled..

- c. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the inclusion of the name of the defendant no. 1 in the Form I & XIV of the property under survey no. 93/2 93/3, 93/4 of village Bambolim is illegal and the name of the defendant no.1 may be ordered to be deleted and the plaintiffs name may be ordered to be included in the said survey records as owner/occupants of the suit property and defendant no. 1 to 5 have no right in the suit property.
- d. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that Decree in the compromise decree dated 25/1/2007 in Regular Civil Suit No. 6/2007/C before Civil Judge Senior Division at Panaji is without jurisdiction, illegal and void ab initio and is not binding on the plaintiff.
- e. That this Hon'ble Court may be pleased to pass a Judgment and Decree directing the defendant no.1 and 2 to hand over the vacant possession of the suit property under survey no. 93/2 93/3, 93/4 of village Bambolim amdeasuring 97,500 sq mts to the plaintiff .
- f. That this Hon'ble Court may be pleased to pass a Judgment and Decree declaring that the certificate dt. 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no. 1 to 4 is not a title ownership document of the suit property Saveli Gali and Oros and does not confer any right of ownership in favour of defendant no. 1 to 4 or any person claiming through them including the predecessors of defendant no.3 late Alexander Rodrigues, Maria Concesao Rodrigues.
- g. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the certificate 18/3/1904 allegedly issued by Clerk of Comunidade and relied upon by defendant no. 1 to 5 is not a grant of the suit property oros and Saveli galli and does not confer any right on the defendant no. 1 to 4 or their predecessors in the suit property .
- h. That this Hon'ble Court may be pleased to pass a judgment and decree declaring that the property under survey no. 93/2, 3, 4 of village Bambolim is part of the plaintiff property called Saveli Gali and Oros described in the plaint and the same was never granted or sold to late Alexander Rodrigues, Maria Concesao Rodrigues or any other person.
- i. That this Hon'ble Court may be pleased to pass a Judgment and Decree of permanent injunction restraining the Defendants no.1 and 2, their agents servants or any other person claiming through them from starting any development and construction activities in the suit property, changing the

nature of suit property and alienating, selling, transferring, the suit property under survey no. 93/2, 3, 4 of village Bambolim in any manner.

j. That pending the hearing and final disposal of the suit this Hon'ble Court may be pleased to pass a Judgment and Decree of permanent injunction restraining the Defendants no.1 and 2 their agents servants or any other person from starting any development and construction activities or , changing the nature of suit property and alienating, transferring the suit property under survey no. 93/2, 3, 4 of village Bambolim in any manner.

k. For add interim relief in terms of prayer (j)

l. Any other relief this honorable court deem fit and proper.

Place: Panaji, Goa.

PLAINTIFF

Dated: 4th November, 2013

ADVOCATE FOR THE PLAINTIFF

VERIFICATION

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby solemnly verify and state that contents of paragraph 1 to 94 of the above Plaint are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 95 to 101 are in the nature of legal submissions based on legal advice which I believe to be true.

Solemnly affirmed at Panaji-Goa,

On this 4th day of November 2013

DEPONENT

Identified by me;-

Advocate for the plaintiff.

**IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANJIM, GOA**

Special Civil Suit No. 52/2013

Comunidade of Bambolim,

...Plaintiff

V/s

1. Mr. Pascoal Trindade,
And others

.....Defendants

AFFIDAVIT

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church Road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby on solemn oath and affirmation states and submit as under:-

1. I am duly elected attorney of comunidade of bambolim and I have authority to file the present suit .I say that on behalf of the plaintiff I have filed a suit for Declaration, permanent injunction, and consequential reliefs in this Hon'ble Court.
2. I say that I have read the accompanying Complaint understood the same. The contents therefore are as per the records of the comunidade to which I have access. I say that contents of paragraph 1 to 94 of the above Complaint are based on the records of the Comunidade to which I have access and I believe the same to be true and the contents of Paragraph 95 to 101 of the complaint are in the nature of legal submissions based on legal advice which I believe to be true.
3. I say that I affirm the facts set out in the Complaint as if the same are incorporated herein for the purpose of this affidavit to avoid repetition.
4. I say that the annexure to the suit are true copies of the original/certified copies.

5. I say that fraud is played on the plaintiff by the defendant as stated in the plaint. I say that the prayers in the plaint may be granted otherwise irreparable loss and prejudice shall cause to the plaintiff.
6. I say that the contents of the paragraphs 1 to 5 herein above are true and correct to my own knowledge.

Solemnly affirmed at Panaji, Goa.

On 4th day of November 2013

DEPONENT

Identified by me;

ADVOCATE FOR THE PLAINTIFF

VERIFICATION OF AMENDED PARAGRAPH OF THE PLAINT

I, Mr. Louis Abreu, Son of late Agostinho Jose Carmo Abreu, Aged 65 years, Resident of H. No. 283/C, Bambolim Church Road, P.O.GMC Complex, Bambolim, Ilhas Goa Attorney of Comunidade of Bambolim having office at Bambolim, P O GMC Complex, Bambolim, Ilhas Goa, do hereby on solemn oath and affirmation state that as per order dated 25/06/2021 of this Hon'ble Court the plaint has been amended. I verify on oath that amended paragraph 94A to 94C of the plaint are based on records of the Comunidade of Bambolim to which I have access and I believe the same to be true and the prayer made under prayer (a1) is as per legal advise.

Solemnly affirmed at Panaji, Goa.

On 06th day of July 2021

DEPONENT

Identified by me;

ADVOCATE FOR THE PLAINTIFF